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Attorney for Plaintiff, GREEN SANDS INVESTMENT CLUB B, LLC

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF ALAMEDA**

GREEN SANDS INVESTMENT CLUB B,
LLC, a Delaware limited liability company;

Plaintiff,

v.

CRYPTO LOTUS FUND A, LP, a Delaware
limited partnership; JONAS LAUREN NORR,
an individual; and DOES 1 through 100,
inclusive,

Defendants.

Case No. **22CV008125**

COMPLAINT FOR:

- (1) BREACH OF CONTRACT;**
- (2) INTENTIONAL MISREPRESENTATION;**
- (3) NEGLIGENT MISREPRESENTATION;**
- (4) FRAUDULENT CONCEALMENT;**
- (5) BREACH OF THE COVENANT OF GOOD FAITH AND FAIR DEALING;**
- (6) INTERFERENCE WITH CONTRACT;**
- (7) BREACH OF FIDUCIARY DUTY;**
- (8) CONSTRUCTIVE FRAUD; and**
- (9) DECLARATORY RELIEF.**

Plaintiff GREEN SANDS INVESTMENT CLUB B, LLC, a Delaware limited liability company ("GREEN SANDS" or "Plaintiff"), hereby complains and alleges as follows:

THE PARTIES

1. GREEN SANDS ("Plaintiff") is a limited liability company organized and existing under the laws of the State of Delaware, which does business in the County of Alameda, State of California.

2. Plaintiff is informed and believes, and based thereon alleges, that Defendant CRYPTO LOTUS FUND A, LP (“CRYPTO LOTUS”) is a limited partnership organized and existing under the laws of the State of Delaware, which is registered as a foreign corporation in the State of California and does business in the County of Alameda.

3. Defendant JONAS LAUREN NORR (“NORR”) is an individual who resides in the State of California and does business in the County of Alameda, California.

4. The true names and capacities of the defendants named herein as DOES 1 through 100, inclusive, whether individual, corporate, associations or otherwise, are currently unknown to Plaintiff, who therefore sues such defendants by fictitious names pursuant to California *Code of Civil Procedure* section 474. Plaintiff will amend this Complaint to show the true names and capacities of additional Doe defendants when they have been ascertained.

5. Plaintiff is informed and believes, and based thereon alleges, that each of the fictitiously named defendants is in some way responsible for occurrences as herein alleged and that the damages as herein alleged were proximately caused, at least in part, by the conduct of each said fictitiously named defendant.

6. Plaintiff is informed and believes, and based thereon alleges, that, at all times herein mentioned, each of the defendants was the agent, employee, partner, joint venturer, and/or conspirator with each of the remaining defendants, and in doing the things hereinafter alleged, was acting within the course and scope of such agency, employment, partnership, and/or joint venture, and/or in furtherance of such conspiracy, and with the permission and consent of each defendant.

7. DOE defendants 1 through 10 are principals, members, owners, and/or managers of Defendant CRYPTO LOTUS or related entities.

JURISDICTION AND VENUE

8. Jurisdiction and venue is appropriate in Alameda County because, among other things, (1) the contract at issue in this proceeding was entered into, executed, and breached in Alameda County; (2) many of the subject misrepresentations and concealments by Defendants were made in Alameda County; (3) Defendant CRYPTO LOTUS has its “principal place of business” in

9. California located in Alameda County; (4) Defendant JONAS LAUREN NORR is located in Alameda County; and (4) both Plaintiff and Defendants conduct business in Alameda County.

GENERAL ALLEGATIONS

10. Plaintiff, as the investor (also referred to herein as the “Investor”), and Defendant CRYPTO LOTUS, as the cryptocurrency hedge fund (also referred to herein as the “Fund” or the “Company”), are parties to the original Subscription Agreement and other offering-related documents (hereinafter collectively referred to as the “SA”), which was entered into, for reference purposes, in or about 2017. A true and correct copy of a “redacted” version of the original SA is attached hereto as **Exhibit A**, and is incorporated herein by reference.

11. Pursuant to the SA, the original principal amount of the investment by Plaintiff in the Fund was \$400,000.00 USD; however, this amount had increased to \$585,000.00 USD (the “Principal”) in or about February/March of 2018.

12. The Fund specifically invests in cryptocurrency, which is an extremely volatile asset class that operates on a marketplace that never closes (trading occurs 24 hours, 7 days a week), but offers excellent liquidity through various exchanges.

13. From 2017 through 2020, the Fund repeatedly failed to provide Net Asset Value (“NAV”) reports as well as Capital Account Balance (“CAB”) reports showing Plaintiff’s investment activity, as required on a quarterly basis. In fact, the Fund completely stopped all reporting of any kind in or about the first quarter of 2019, which resulted in a formal examination and investigation of Defendant CRYPTO LOTUS by the U.S. Securities and Exchange Commission (“SEC”).

14. Plaintiff is informed and believes, and thereon alleges, that based on its investigation and findings, the SEC issued a deficiency letter to Defendant CRYPTO LOTUS specifically citing internal accounting inconsistencies related to the Fund, mismanagement of the Fund for failing to regularly report and provide significant disclosures to investors, and other areas of non-compliance.

15. After numerous written requests and failed attempts to withdraw its CAB from the Fund in 2019 through the end of 2020, Plaintiff was left with no choice but to engage its corporate

1 general counsel, Attorney Carmelo G. Chimera, who issued a formal written Demand for Immediate
2 Payment for Liquidation dated February 9, 2021. A true and correct copy of Mr. Chimera's demand
3 letter to Defendant CRYPTO LOTUS is attached hereto as **Exhibit B**, and is incorporated herein by
4 reference.

5 16. Mr. Chimera's demand letter succinctly describes Plaintiff's extraordinary patience
6 and numerous "good faith" attempts to resolve this repayment issue amicably and informally, while
7 also summarizing Defendant CRYPTO LOTUS' numerous misrepresentations to Plaintiff,
8 unfulfilled promises, and "bad faith" delay tactics to avoid repayment of Plaintiff's CAB, to
9 Plaintiff's detriment.

10 17. As a result of Mr. Chimera's demand letter, Plaintiff and Defendant CRYPTO
11 LOTUS engaged in settlement negotiations regarding repayment of Plaintiff's CAB, which resulted
12 in a fully-executed Settlement Agreement and Release dated March 19, 2021 (hereinafter "SAR").
13 A true and correct copy of the SAR is attached hereto as **Exhibit C**, and is incorporated herein by
14 reference.

15 18. The opening paragraph of the SAR acknowledges Plaintiff's position that "it has
16 repeatedly demanded repayment of the Principal plus all accrued profit and interest," which has
17 resulted in the SAR. (See **Exhibit C**, Page 1, Opening Paragraph.) The terms of the SAR provide,
18 among other things, that Plaintiff "shall have the right to make a withdrawal of all or any part of its
19 Capital Account Balance on written notice to the Company" and that Defendant CRYPTO LOTUS
20 "shall make full payment of the Capital Account Balance within thirty (30) calendar days of receipt
21 of the Withdrawal Notice." (See **Exhibit C**, Page 1 Paragraph 1.)

22 19. In addition, the SAR requires that Defendant CRYPTO LOTUS "provide the
23 Investor an estimate of the Investor's net asset value (the "NAV")" on "the last day of each calendar
24 quarter hereafter." (See **Exhibit C**, Page 1 Paragraph 2.)

25 20. Furthermore, the SAR specifically states that "As of the date of this Agreement, the
26 Company understands the Investor intends to issue a Withdrawal Notice as of April 1, 2021 based
27 on the NAV of the Capital Account Balance as of close of business March 31, 2021, which
28

1 withdrawal shall be dependent upon the Investor's satisfaction with the NAV as of such date." (See
2 **Exhibit C**, Page 1 Paragraph 3.)

3 21. Finally, the SAR provides for the award of "costs, fees, and expenses, including
4 reasonable attorney's fees" to the prevailing party. (See **Exhibit C**, Pages 2-3, Paragraph 10.)

5 22. After Defendant CRYPTO LOTUS failed to provide its NAV report for the first
6 quarter of 2021 ("Q1-2021"), in direct breach of the SAR, Plaintiff (through its Senior Investment
7 Analyst, Joshua Milstein) requested this report again from Defendant NORR (the Fund Manager
8 and Chief Information Officer of Defendant CRYPTO LOTUS) and also provided written
9 withdrawal notice for repayment of Plaintiff's CAB via electronic mail to Defendant NORR dated
10 April 23, 2021. This began a long string of e-mails to and from Mr. Milstein and Defendant NORR,
11 which documents Plaintiff's repeated requests for repayment as well as Defendant NORR's
12 numerous misrepresentations regarding both the production of the Q1-2021 NAV report and the
13 Fund's intentional delay tactics with respect to its refusal to repay Plaintiff's CAB. A true and
14 correct copy of the e-mail string between Plaintiff and Defendant NORR is attached hereto as
15 **Exhibit D**, and is incorporated herein by reference.

16 23. This e-mail string, coupled with Defendant CRYPTO LOTUS' failure to provide its
17 Q1-2021 NAV report, resulted in a "Final" Withdrawal Notice ("FWN") dated August 5, 2021 from
18 Plaintiff which, once again, requested "100% of its Capital Account Balance, in the amount to be
19 calculated as the greater of (i) the Capital Account Balance as of March 31, 2021 or (ii) the Capital
20 Account Balance as of April 30, 2021...within thirty (30) calendar days here from." (See Cover
21 Letter dated August 4, 2021, attached to FWN.) A true and correct copy of the FWN (with Cover
22 Letter) is attached hereto as **Exhibit E**, and is incorporated herein by reference.

23 24. Despite Plaintiff's numerous requests, including its FWN dated August 5, 2021, and
24 the mandatory reporting requirements set forth in the fully-executed SAR, Defendant CRYPTO
25 LOTUS failed to provide Plaintiff with its NAV reports for either Q1-2021 or Q2-2021 in a timely
26 fashion, which were due on March 31, 2021 and June 30, 2021, respectively, in direct breach of the
27 SAR.
28

25. As a result, Plaintiff was forced to make its FWN “blindly” on August 5, 2021, without having seen any NAV reports since Q4-2018; however, on or about September 8, 2021 (four days past the 30-day withdrawal period following Plaintiff’s FWN), Defendant CRYPTO LOTUS finally provided Plaintiff with its NAV reports for Q4-2020 (through December 31, 2020) and Q1-2021 (through March 31, 2021). A true and correct copy of the NAV from Q1-2021 is attached hereto as **Exhibit F**, and is incorporated herein by reference.

26. The Q1-2021 NAV (with a value date of March 31, 2021) shows Plaintiff’s “gross” CAB in the amount of **\$4,902,103 USD**. (See **Exhibit F**, Page 1, Column 6.)

27. Plaintiff is informed and believes, and based thereon alleges, that Defendants have, for a period of years, intentionally engaged in “bad faith” negotiations and repeatedly misrepresented facts related to both the production of its NAV reports, and specifically the NAV report for Q1-2021, as well as the timing of repayment of Plaintiff’s CAB, which Plaintiff reasonably relied on to its financial and reputational detriment. Plaintiff further believes and alleges that Defendants actions in this regard were done intentionally to frustrate and delay Plaintiff’s attempts to withdraw its CAB from the Fund.

28. As of the filing date of this Complaint, Plaintiff still has not received repayment of its CAB from Defendant CRYPTO LOTUS, based on the FWN 30-day period, which began on August 5, 2021 and expired on September 4, 2021.

FIRST CAUSE OF ACTION
(Breach of Contract)
(Against Defendant CRYPTO LOTUS)

29. Plaintiff refers to paragraphs 1 through 27, inclusive, and incorporates the same herein by this reference.

30. GREEN SANDS (as the “Investor”) and Defendant CRYPTO LOTUS (also referred to herein as the “Fund” or the “Company”) are parties to the SA as well as the subsequent SAR, which supersedes the SA and dictates new repayment terms, including the timing and effect of Investor’s written notice of withdrawal of its CAB in the Fund.

1 31. Pursuant to the withdrawal and redemption terms in the SAR, GREEN SANDS
2 “shall have the right to make a withdrawal of all or any part of its Capital Account Balance on
3 written notice to the Company (a “Withdrawal Notice”). Thereafter, the Company shall make full
4 payment of the CAB within thirty (30) calendar days of receipt of the Withdrawal Notice (such 30-
5 day period, the “Withdrawal Notice Period”), such payment to be made in immediately available
6 funds by ACH Wire transfer to the account or accounts set forth by the Investor in the Withdrawal
7 Notice.”

8 32. A material part of the consideration provided by Plaintiff was its assumption of the
9 effect of certain new requirements for formal withdrawal notice specifically identified in the SAR,
10 including Defendant CRYPTO LOTUS’ obligation for direct payment to Plaintiff, via ACH wire
11 transfer, within thirty (30) days of receipt of withdrawal notice. Plaintiff had agreed to these terms,
12 despite its repeated requests and demands for withdrawal, which were ignored by Defendant
13 CRYPTO LOTUS, in lieu of filing a formal lawsuit against Defendants.

14 33. Defendant CRYPTO LOTUS is bound to perform all of its obligations under the
15 terms of the SAR and to pay any amounts owing to Plaintiff, including its CAB, within thirty (30)
16 days of receipt of Plaintiff’s withdrawal notice. Plaintiff provided its FWN to Defendant CRYPTO
17 LOTUS on August 5, 2021 and has not been paid its CAB, which was due by September 4, 2021,
18 pursuant to the SAR.

19 34. Section 1 on Page 2 of the SAR further required Defendant CRYPTO LOTUS to
20 disclose updated financial information related to the status of Plaintiff’s CAB: “On the last day of
21 each calendar quarter hereafter, the Company will provide the Investor an estimate of the Investor’s
22 net asset value (the “NAV”).”

23 35. Plaintiff has performed its obligations under the SAR, including, but not limited to,
24 providing proper written notice of its request to withdraw the entire CAB from Defendant CRYPTO
25 LOTUS, and is not in breach thereof.

26 36. Defendant CRYPTO LOTUS breached the SAR by, among other things, (a) failing
27 to pay Plaintiff’s CAB within thirty (30) days of Plaintiff’s written notice of withdrawal, and (b)
28 failing to provide Plaintiff’s NAV in a timely fashion (at the end of each calendar quarter).

1 37. Plaintiff has made several demands and requests upon Defendant CRYPTO LOTUS
2 to fully perform its clear obligations under the executed SAR, but, as of the filing of this Complaint,
3 Defendant CRYPTO LOTUS has continued to breach the SAR by failing and refusing to repay all
4 of Plaintiff's CAB in the Fund despite receiving Plaintiff's timely and proper withdrawal notice.

5 38. As a direct and proximate result of the aforementioned breaches by Defendant
6 CRYPTO LOTUS, Plaintiff has been significantly damaged by, among other things, (a) the inability
7 to repay its club members their respective shares of the CAB with the Fund, (b) loss of club
8 members' trust and irreparable damage to Plaintiff's business reputation and goodwill, (c) lost
9 revenue and profits on additional investment possibilities due to Plaintiff's and its members'
10 inability to reinvest its CAB funds, (d) increased costs and damages associated with the delays in
11 repayment and uncertainty of Plaintiff's CAB, (e) lost profits and depreciation of Plaintiff's CAB as
12 of Q1-2021, due to potential fluctuations in the volatile cryptocurrency market, due to Defendants
13 failure to provide timely NAV reports and refusal to repay Plaintiff's CAB, despite numerous written
14 withdrawal requests, and (e) additional related items.

15 39. Pursuant to Section 10 on Page 2 of the SAR, the "prevailing party" in any litigation
16 is entitled to recovery of its reasonable attorney's fees and costs.

17 40. Accordingly, Plaintiff has been damaged in an amount to be proven at trial, plus costs
18 of suit, including contractual attorney's fees and costs.

19 41. Wherefore, Plaintiff prays for judgment against CRYPTO LOTUS as set forth below.

20
21 **SECOND CAUSE OF ACTION**
22 **(Intentional Misrepresentation)**
23 **(Against all Defendants)**

24 42. Plaintiff refers to paragraphs 1 through 40, inclusive, and incorporates the same
25 herein by this reference.

26 43. Defendants CRYPTO LOTUS, JONAS LAUREN NORR, and DOES 1 through 100
27 (hereinafter collectively referred to as the "Defendants") made numerous representations concerning
28 the obligations under the SAR and their responsibility therefor, including, among other things,
representing to Plaintiff, in connection with the SAR, (a) that Defendants would provide repayment

1 of Plaintiff's CAB within 30-days of receipt of written notice to the Company, (b) that repayment
2 of Plaintiff's CAB would be based on the NAV report for Q1-2021, (c) that the NAV report for Q1-
3 2021 would be provided by March 31, 2021, (d) that each subsequent NAV report from the date of
4 the SAR would be provided to Plaintiff "on the last day of each calendar quarter" going forward,
5 (e) that Plaintiff did not provide proper or timely withdrawal notice to Defendants, which was
6 merely a ruse used by Defendants to continually delay repayment of Plaintiff's CAB, and (f) other
7 specific misrepresentations according to proof.

8 44. At the time Defendants made the aforementioned representations, such
9 representations were false, and Defendants knew them to be false.

10 45. At the time Defendants made the aforementioned representations, Defendants
11 intended them to be relied upon and they were in fact relied upon, both by Plaintiff, who relied on
12 Defendants' full disclosure of purported obligations and assurances that Defendant was continuing
13 to perform all obligations related to the Principal investment by Plaintiff under the SA and the SAR,
14 and third parties, who now seek to impose the obligations under the SA and SAR on Plaintiff.

15 46. The aforementioned reliance by Plaintiff was reasonable given, among other things,
16 Defendants' position as the Administrator and Manager of the CRYPTO LOTUS Fund, the legal
17 obligations and compliance requirements created by the SA, and Defendant CRYPTO LOTUS'
18 ongoing legal obligations pursuant to the executed SAR with Plaintiff.

19 47. Plaintiff's reliance on the Defendants' misrepresentations as well as third parties'
20 reliance thereon was a substantial factor in causing the significant harm suffered by Plaintiff as
21 alleged herein.

22 48. Among other things, Plaintiff has been harmed by the inability to repay its club
23 members for their respective shares of the CAB, despite repeated withdrawal requests, as well as
24 the loss of club members' trust and irreparable damage to Plaintiff's business reputation and
25 goodwill.

26 49. As a result of the fraud by Defendants, as herein alleged, Plaintiff has been damaged
27 in a substantial sum, estimated to be in excess of Four Million (\$4,000,000.00) Dollars, the precise
28 amount of which is subject to proof at trial.

1 50. The aforementioned conduct of Defendants was an intentional misrepresentation,
2 deceit, concealment of a material fact known to Defendants with the intention on the part of
3 Defendants of thereby depriving Plaintiff of money, property, or legal rights or otherwise causing
4 injury, and was despicable conduct that subjected Plaintiff to cruel and unjust hardship in conscious
5 disregard of Plaintiff's rights, so as to justify an award of exemplary and punitive damages herein.

6 51. Wherefore, Plaintiff prays for judgment against Defendants as set forth below.

7
8 **THIRD CAUSE OF ACTION**
9 **(Negligent Misrepresentation)**
 (Against All Defendants)

10 52. Plaintiff refers to paragraphs 1 through 50, inclusive, and incorporates the same
11 herein by this reference.

12 53. Defendants made numerous representations to Plaintiff, in connection with the SAR,
13 including, (a) that Defendants would provide repayment of Plaintiff's CAB within 30-days of receipt
14 of written notice to the Company, (b) that repayment of Plaintiff's CAB would be based on the NAV
15 report for Q1-2021, (c) that the NAV report for Q1-2021 would be provided by March 31, 2021, (d)
16 that each subsequent NAV report from the date of the SAR would be provided to Plaintiff "on the
17 last day of each calendar quarter" going forward, (e) that Plaintiff did not provide proper or timely
18 withdrawal notice to Defendants, which was merely a ruse used by Defendants to continually delay
19 repayment of Plaintiff's CAB, and (f) other specific misrepresentations according to proof.

20 54. At the time Defendants made these aforementioned representations, Defendants may
21 have honestly believed that each representation was true; however, Defendants had no reasonable
22 grounds for believing these representations were true when they were made to Plaintiff.

23 55. At the time Defendants made the aforementioned representations, Defendants
24 intended them to be relied upon and they were in fact relied upon, both by Plaintiff, who relied on
25 Defendants' full disclosure of purported obligations and assurances that Defendant was continuing
26 to perform all obligations related to the Principal investment by Plaintiff under the SA and the SAR,
27 and third parties, who now seek to impose the obligations under the SA and SAR on Plaintiff.

1 56. The aforementioned reliance by Plaintiff was reasonable given, among other things,
2 Defendants' position as the Administrator and Manager of the CRYPTO LOTUS Fund, the legal
3 obligations and compliance requirements created by the SA, and Defendant CRYPTO LOTUS'
4 ongoing legal obligations pursuant to the executed SAR with Plaintiff.

5 57. Plaintiff's reliance on the Defendants' misrepresentations as well as third parties'
6 reliance thereon was a substantial factor in causing the significant harm suffered by Plaintiff as
7 alleged herein.

8 58. Among other things, Plaintiff has been harmed by the inability to repay its club
9 members for their respective shares of the CAB, despite repeated withdrawal requests, as well as
10 the loss of club members' trust and irreparable damage to Plaintiff's business reputation and
11 goodwill.

12 59. As a result of the fraud by Defendants, as herein alleged, Plaintiff has been damaged
13 in a substantial sum, estimated to be in excess of Four Million (\$4,000,000.00) Dollars, the precise
14 amount of which is subject to proof at trial.

15 60. The aforementioned conduct of Defendants was a negligent misrepresentation,
16 deceit, and concealment of a material fact known to Defendants with the intention on the part of
17 Defendants of thereby depriving Plaintiff of money, property, or legal rights or otherwise causing
18 injury, and was despicable conduct that subjected Plaintiff to cruel and unjust hardship in conscious
19 disregard of Plaintiff's rights, so as to justify an award of exemplary and punitive damages herein.

20 61. Wherefore, Plaintiff prays for judgment against Defendants as set forth below.

21
22 **FOURTH CAUSE OF ACTION**
23 **(Fraudulent Concealment)**
24 **(Against All Defendants)**

25 62. Plaintiff refers to paragraphs 1 through 60, inclusive, and incorporates the same
26 herein by this reference.

27 63. Defendants, by virtue of, among other things, the obligations created under the SA,
28 and the separate and continuing obligations relating to the executed SAR, owe a fiduciary duty to
Plaintiff.

1 64. As set forth above, Defendants intentionally failed to disclose certain key facts and
2 fulfill its fiduciary obligations to Plaintiff in connection with the production of its NAV reports for
3 Q1-2021 and, in general, as well as the overall performance of the Fund and Plaintiff's CAB, which
4 yielded significant increases in value during Q1-2021 (collectively, the "Concealments").

5 65. Plaintiff did not become aware of the Concealments until September 8, 2021, when
6 Defendants finally provided Plaintiff with its NAV reports for Q4-2020 and Q1-2021.

7 66. Defendants did the acts herein alleged with the intent to deceive and defraud Plaintiff,
8 and Defendants employed false representations and the Concealments to conceal from Plaintiff the
9 obligations under the SAR (and the SA) in an effort to frustrate and delay payment of Plaintiff's
10 CAB.

11 67. Had the Concealments been disclosed, Plaintiff reasonably would have behaved
12 differently, and, among other things, would have definitely "cashed out" its CAB in the Fund based
13 on the Q1-2021 NAV report, the breach of which by Defendants would have resulted in Plaintiff's
14 Complaint being filed earlier in the year.

15 68. As a result of the Concealments, and as otherwise plead herein, Plaintiff has been
16 harmed and the Concealments were a substantial factor in causing Plaintiff's harm.

17 69. Among other things, Plaintiff has been harmed by the inability to repay its club
18 members for their respective shares of the CAB, despite repeated withdrawal requests, as well as
19 the loss of club members' trust and irreparable damage to Plaintiff's business reputation and
20 goodwill.

21 70. As a result of the Concealments by Defendants, as herein alleged, Plaintiff has been
22 damaged in a substantial sum, estimated to be in excess of Four Million (\$4,000,000.00) Dollars,
23 the precise amount of which is subject to proof at trial.

24 71. The aforementioned conduct of Defendants was a concealment of a material fact
25 known to Defendants with the intention on the part of Defendants of thereby depriving Plaintiff of
26 money, property, or legal rights or otherwise causing injury, and was despicable conduct that
27 subjected Plaintiff to cruel and unjust hardship in conscious disregard of Plaintiff's rights, so as to
28 justify an award of exemplary and punitive damages herein.

72. Wherefore, Plaintiff prays for judgment against Defendants as set forth below.

FIFTH CAUSE OF ACTION
(Breach of the Covenant of Good Faith and Fair Dealing)
(Against Defendant CRYPTO LOTUS)

73. Plaintiff refers to paragraphs 1 through 71, inclusive, and incorporates the same herein by this reference.

74. Plaintiff and Defendant CRYPTO LOTUS entered into a written SAR in which Plaintiff would be paid its CAB within thirty (30) days of providing withdrawal notice to Defendants. Plaintiff has repeatedly provided written notice of withdrawal to Defendants; however, Defendants have continually refused to repay Plaintiff its CAB.

75. Plaintiff has performed all conditions, covenants, and promises required on its part to be performed, in accordance with the terms and conditions of the SAR.

76. All conditions precedent for Defendants' performance of the SAR have occurred; however, Defendants have unfairly interfered with Plaintiff's right to receive the benefits of the SAR.

77. As a result, Plaintiff has suffered damages totaling at least Four Million (\$4,000,000.00) Dollars, as well as attorney's fees, costs and expenses, and accrued interest as provided by law.

78. Wherefore, Plaintiff prays for judgment against Defendants as set forth below.

SIXTH CAUSE OF ACTION
(Interference with Contract)
(Against All Defendants)

79. Plaintiff refers to paragraphs 1 through 77, inclusive, and incorporates the same herein by this reference.

80. At all times material hereto, Plaintiff had valid and existing contractual relationships with its club members to properly invest their money and provide updated and frequent reports on the status of their investments, including, but not limited to, its investment with Defendant CRYPTO LOTUS.

89. The aforementioned conduct of Defendant NORR (and/or DOES 1-10, and each of them) constitutes a breach of his fiduciary duty to Plaintiff with the intention of depriving Plaintiff of money, property, or legal rights or otherwise causing injury, and was despicable conduct that subjected Plaintiff to cruel and unjust hardship in conscious disregard of Plaintiff's rights, so as to justify an award of exemplary and punitive damages herein.

90. Wherefore, Plaintiff prays for judgment against Defendant NORR (and/or DOES 1-10, and each of them) as set forth below.

EIGHTH CAUSE OF ACTION

(Constructive Fraud)

(Against Defendant JONAS LAUREN NORR and DOES 1-10)

91. Plaintiff refers to paragraphs 1 through 89, inclusive, and incorporates the same herein by this reference.

92. In view of the allegations set forth herein above, Defendant NORR (and/or DOES 1-10, and each of them) never intended to honor his confidential and fiduciary relationship to Plaintiff as Fund Manager for Defendant CRYPTO LOTUS. In fact, at all times material hereto, Defendant NORR (and/or DOES 1-10, and each of them) intended to enter into a course of conduct adverse to the interests of Plaintiff, and for his and his Company's own best interests, by refusing to acknowledge Plaintiff's proper and timely notice of withdrawal and, thus, withholding and delaying repayment of Plaintiff's Principal investment, plus all accrued profit and interest (the "Capital Account Balance").

93. As a proximate result of the Constructive Fraud of Defendant NORR (and/or DOES 1-10, and each of them), Plaintiff has been damaged in an amount not yet fully ascertained, the proof of which will be offered at trial; however, Plaintiff estimates its damages to be in excess of Four Million (\$4,000,000.00) Dollars.

1 94. The aforementioned acts of Defendant NORR (and/or DOES 1-10, and each of them)
2 were intended to injure Plaintiff, were in conscious disregard to the rights of Plaintiff, pursuant to
3 the SA and the SAR, and were undertaken with the knowledge of probable injury to Plaintiff's
4 interests, thereby depriving Plaintiff of money, property, or legal rights or otherwise causing injury,
5 and was despicable conduct that subjected Plaintiff to cruel and unjust hardship so as to justify an
6 award of
7 exemplary and punitive damages herein.

8 95. Wherefore, Plaintiff prays for judgment against Defendant NORR (and/or DOES 1-
9 10, and each of them) as set forth below.

10
11 **NINTH CAUSE OF ACTION**
12 **(Declaratory Relief)**
 (Against All Defendants)

13 96. Plaintiff refers to paragraphs 1 through 94, inclusive, and incorporates the same
14 herein by this reference.

15 97. Plaintiff takes the position that it has repeatedly demanded and had, on numerous
16 occasions, provided proper and timely written notice of withdrawal to Defendants, pursuant to the
17 terms of the original SA and the obligations under the SAR, obligating Defendants to repay
18 Plaintiff's CAB.

19 98. Defendants dispute Plaintiff's position that notice was properly provided to
20 Defendants, and that Defendants were not obligated to repay Plaintiff's CAB.

21 99. A judicial determination is necessary and appropriate at this time under the
22 circumstances in order to determine the relative obligations, rights, and duties of Plaintiff and
23 Defendants, if any, under the SAR.

24 100. Wherefore, Plaintiff prays for judgment against Defendants as set forth below.

25 **PRAYER**

26 WHEREFORE, Plaintiff GREEN SANDS INVESTMENT CLUB B, LLC ("Plaintiff"),
27 prays for relief and judgment against Defendants, and each of them, as follows:
28

On the FIRST and FIFTH Causes of Action:

1. For an award of damages to Plaintiff in a total amount to be proven at trial;
2. For interest on such amount as provided and allowed by law;
3. For costs, fees, and expenses, including reasonable attorneys' fees, pursuant to Section 10, Pages 2-3 of the SAR; and
4. For such other and further relief as the Court deems just and proper.

On the SECOND, THIRD, FOURTH, SIXTH, SEVENTH, and EIGHTH Causes of Action:

1. For an award of damages to Plaintiff in a total amount to be proven at trial;
2. For punitive damages;
3. For costs, fees, and expenses, including reasonable attorneys' fees, pursuant to Section 10, Pages 2-3 of the SAR; and
4. For such other and further relief as the Court deems just and proper.

On the NINTH Cause of Action for Declaratory Relief:

1. For a declaration that Plaintiff provided proper and timely written notice of withdrawal to Defendant CRYPTO LOTUS and, thus, fulfilled all of its obligations under the SAR;
2. For a declaration that Defendant CRYPTO LOTUS is solely responsible for breaching its obligations under the SAR by failing to provide timely NAV reports to Plaintiff and by refusing to repay Plaintiff's Capital Account Balance within thirty (30) days of receiving proper and timely withdrawal notice; and
3. For costs of suit and such further relief as the Court deems just and proper.

Dated: March 8, 2022

FURUKAWA CASTLES LLP

By:



BRUCE N. FURUKAWA
OSCAR G. JIMENEZ
Attorneys for Plaintiff, GREEN SANDS
INVESTMENT CLUB B, LLC

EXHIBIT A

Subscription Agreement

This Subscription Agreement relates to

Limited Liability Company Interests in

CRYPTO LOTUS FUND A, L.P.

A Delaware Limited Liability Company ("U.S. Fund A")

Limited Liability Company Interests in

CRYPTO LOTUS FUND B, LLC

A Delaware Limited Liability Company ("U.S. Fund B")

Redeemable, Non-Voting, Participating Shares in

CRYPTO LOTUS FUND B (INTERNATIONAL), LTD.

A Cayman Islands Exempted Company (the "International Fund")

Subscriber: Green Sands Investment Club B, LLC.

Investor (defined below) is to provide Investor's full legal name used in Part III below, and include the co-investor and representative name identified in Part III if applicable.

Subscription for (Investor is to complete amount and intended Fund):

Amount Paid in Fiat: USD _____

Amount Paid in Crypto: Symbol (e.g. BTC, ETH, LTC, or other) and **Amount** (units): _____

Amount Paid in Fiat: USD _____

Amount Paid in Crypto: Symbol (e.g. BTC, ETH, LTC, or other) and **Amount** (units): _____

Amount Paid in Fiat: USD 400,000

Fund:

☒ **Crypto Lotus Fund A, L.P.**
May be preferred by U.S. taxable investors

☐ **Crypto Lotus Fund B, LLC**
May be preferred by U.S. taxable investors

☐ **Crypto Lotus Fund B (International), Ltd.**
May be preferred by investors that are not U.S. persons or are U.S. tax-exempt investors

Intended Effective Date of Investment: [indicate month day, year]: _____
(for example, January 1, 2018)

Holidays may cause deadlines to be earlier, and may cause the effective date of investment to be later.

Subscription requests will be irrevocable. If subscription documentation and funding is not received in good order by the due dates of each, your subscription will be effective the next subscription date (that is, it may be delayed a month or more, during which time you will not participant in the Fund's gains or losses).

Investor is to check each box that applies:

☒ **U.S. Taxable Investor.** Investor is a U.S. person ("U.S. Person") as defined in Regulation S of the Securities Act of 1933 (the "Securities Act") and is not tax-exempt.

☐ **U.S. Tax-Exempt Investor.** Investor is a U.S. Person and is a tax-exempt investor.

☐ **Non-U.S. Investor.** Investor is not a U.S. Person.

Prospective investors should consult their own tax, legal and financial advisors before selecting a particular Fund and making an investment in the Funds.

☐ **Employee Retirement Income Security Act of 1974 ("ERISA") Investor.** Investor is a plan or account to which Part II, Item 21 of this Subscription Agreement applies.

The Funds may accept or reject your subscription for Interests (defined below). Your subscription in the Funds is subject to the entirety of the documentation in this Subscription Agreement. Note: Existing investors in the Funds who are making follow-on investments into the Funds should instead use Part V – Subscription Form – Further Interests.

General Partner Acceptance

To be completed by the General Partner only

Name: _____

Signature: _____

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Subscriptions are subject to the terms and conditions set out in the Funds’ offering memorandum as in effect from time to time. These terms and conditions include the frequency of subscription opportunities, the required timing of the submission of subscription documentation and of payment for Fund Interests, investment minimums, and other terms and conditions.

Such terms and conditions may be updated as to new initial and subsequent subscriptions in the Funds’ discretion by notice to Investors.

The U.S. Fund A and the U.S. Fund B (each a “U.S. Fund”) and the International Fund are referred to in this Subscription Agreement as the “Funds” and each as a “Fund.” The Fund in which you seek to invest may be referred to below as “the Fund.”

The securities being offered pursuant to this Subscription Agreement are, collectively, the “Interests,” and subscribers to either of the Funds are referred to as “Investors.”

“Crypto Lotus” refers to Crypto Lotus, LLC, in its role as the Managing Member or General Partner of each U.S. Fund, as applicable, and as the context requires, and/or the Investment Manager of each or all of the Funds as the context requires.

PART I

GUIDE TO SUBSCRIPTION

1. General Conditions

References to “you” and “your” in Parts I and II of this Subscription Agreement means the person(s) named as the Investor (and co-Investor, if any) in Part III of this Subscription Agreement.

Subscriptions for Interests must be made on the Subscription Form in Part III of this Subscription Agreement. Subscription requests will be irrevocable, will not be acknowledged and no receipt will be issued for payment made with the subscription request.

2. Selling Restrictions

No person receiving a copy of this Subscription Agreement in any territory where offering of the Interests is prohibited by law may treat the same as constituting an invitation to him, nor should he in any event use such Subscription Agreement, unless in the relevant territory such an invitation could lawfully be made to him or such Subscription Agreement could lawfully be used without compliance with any registration or other legal requirements.

3. Complete the Cover Page, the Appendix to Part II, the Subscription Form in Part III, and Part IV of this Subscription Agreement, which includes IRS Form W-9 for U.S. persons (or, for non-U.S. Persons, provide the appropriate version of IRS Form W-8).

- (a) On the cover page of this document, insert your full name along the name of any co-investor and/or representative, and indicate the amount you wish to invest in the Fund. Subscriptions may only be made by persons aged 18 or over.
- (b) Complete the Appendices to Part II below, to indicate the type of Accredited Investor (for all U.S. Persons and any person who is in the U.S. when investing) or Qualified Client (for all Investors) that you are as well as information as to whether you are a benefit plan investor.
- (c) In Part III below,
 - (I) Insert your full name, address and country of citizenship in Box 1.
 - (II) Insert in Box 3 your wire transfer instructions for the account to which the Fund in which you invest shall pay all withdrawals or redemptions and all distributions, whether by way of dividend, voluntary or compulsory withdrawal or redemption, upon liquidation of the Fund or any other means described in the Fund’s private placement memorandum (“Private Placement Memorandum”) and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable.
 - (III) Insert in Box 4 the requested information about the category of investor.
 - (IV) Sign and date the Subscription Agreement in Box 5. The Subscription Agreement may be signed by someone else on your behalf (and/or on behalf of any joint Investor(s), if duly authorized by power of attorney to do so, but any power of attorney pursuant to which this is done (or a duly certified copy thereof) must be enclosed for inspection). A corporation should sign under the hand of a duly authorized officer whose representative capacity must be stated.
- (d) In Part IV, complete the information, complete the appropriate Appendix (1A, 1B, 1C, or 1D), and include the appropriate documentation from Appendix 2. If you are a U.S. person, complete, sign, and include IRS Form W-9 (Appendix 3) with your Subscription Agreement; if you are an investor requiring a different IRS form, please contact us using the contact information noted at the end of this Part I.
- (e) **Please email a pdf** of this Subscription Agreement, duly completed, together with the all relevant Investor Identification documents (must be satisfied before your subscription can be accepted), to the Administrator using the contact information below at the end of this Part I. Neither the Fund nor the Administrator or Crypto Lotus accepts any responsibility for any loss arising from the non-receipt by the Administrator of any Subscription Agreement sent by email. Maintain your original signed version, which the Fund may request at any time.

- (f) Subscription forms for further interests (see Part V) requests, withdrawal or redemption notices, and queries on the procedure for subscription and payment should be directed to the Administrator as follows:

Administrator (For U.S. Fund):

Fleming Financial Services, P.C.
514 South Main Street, Suite A
Bel Air, MD 21014
Phone - 902-237-9547
cryptolotus@flemingfundservices.com

Administrator (For International Fund):

Maitland Administration Limited
5th Floor, 90 Fort Street, PO Box 259
George Town, Grand Cayman, KY1-1104

PART II

TERMS AND CONDITIONS

By applying for Interests in a Fund you hereby irrevocably agree with the Fund as follows:

1. You acknowledge that you have received, read and understood the current Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, and the U.S. Fund A's Limited Partnership Agreement, the U.S. Fund B's limited liability company operating agreement (the "Operating Agreement"), or the International Fund's Memorandum and Articles of Association (the "Articles") relating to the Interests, each as amended from time to time (such agreement, relevant Fund's "Governing Document").
2. All terms defined in the Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, will have the same meaning in this Subscription Agreement unless the context otherwise requires.
3. You agree that in making this subscription you have relied solely on the information set out in the Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, and have not relied on any information or representations contained in any other document or from any other source.
4. Any other method of payment for the Interests, but a cash wire transfer, must be agreed in advance with the Fund.
5. The Fund may accept or reject your subscription for Interests pursuant to this Subscription Agreement. The acceptance may be of the whole or any part of your subscription and, accordingly, the amount of Interests allotted to you may be less than the amount that you subscribe for.
6. If your subscription is invalid, is rejected or is not accepted in full by the Fund, or you are only allotted a portion of the amount of Interests you have subscribed for, any surplus moneys which remain after all subscription moneys due from you have been paid will, after deduction of handling charges normally levied by the Fund's Administrator, for such transactions, be paid to you by wire transfer or by means appropriate for cryptocurrencies to the account specified in the Subscription Agreement without interest.
7. By completing the Subscription Form in Part III of this Subscription Agreement you warrant and/or undertake that:
 - (a) You accurately indicated on the cover page whether or not you are a U.S. Person, as defined under Regulation S under the Securities Act (a "U.S. Person") and whether or not you are exempt from federal income taxes in the United States, and you have accurately completed the attached Appendix to Part II as to your "accredited investor" or "qualified client" status;
 - (b) Absent the Fund's prior written consent, you will not transfer directly or indirectly any of the Interests or any interest therein (including without limitation any right to receive dividends or other distributions) to any other person, and no transferee will be admitted to the Fund unless the proposed transferee has made warranties similar to those contained in this Subscription Agreement, in the Governing Document, and such other warranties by such person have been approved by the Fund;
 - (c) You will supply the Fund with such other facts, information and documents as from time to time are deemed necessary or desirable to ascertain in order to avoid the loss of a contemplated tax benefit to the Fund, any wholly-owned subsidiary it may have, or any of its Investors and in order to ascertain that no violation by the Fund, Crypto Lotus, directors or the Administrator will occur under ERISA or the securities and tax laws of any relevant jurisdiction.
 - (d) You, together with your advisors, are sufficiently sophisticated to understand the risks of an investment in the Fund. If you are an individual, you are aged 18 or over.
 - (e) Your total wealth is such that your investment in the Fund is only a minor percentage of your total wealth and you can afford a total loss of your investment in the Fund.
 - (f) The Fund is required to comply with the provisions of FATCA (defined below). You will provide, as

soon as practicable, such information regarding you and your beneficial owners and such forms or documentation as may be requested from time to time by the Fund (or any agent of the Fund) to enable the Fund to avoid or reduce any withholding under FATCA (or any other applicable law) and to comply with the requirements and obligations imposed on it pursuant to FATCA (or any other withholding or information reporting laws), including, without limitation, such forms and documentation which the Fund may require to determine whether or not the relevant investment is a “U.S. Reportable Account” (or equivalent under any other FATCA regime) and to comply with the relevant due diligence procedures in making such determination.

- (g) Any such forms or documentation requested by the Fund or its agents pursuant to subparagraph 7.(f) above, and any financial or account information with respect to your investment in the Fund, may be disclosed to any governmental body which collects information in accordance with FATCA or any other applicable withholding or information reporting regimes) and to any withholding agent and may be disclosed to the U.S. Internal Revenue Service (“IRS”) and/or such other governments or governmental bodies as may be required by FATCA from time to time.
- (h) You waive, and/or shall cooperate with the Fund to obtain a waiver of, the provisions of any law which prevent compliance by the Fund with its obligations under FATCA, including, without limitation, those laws which prohibit the disclosure by the Fund, or by any of its agents, of the information or documentation requested from you pursuant to this subparagraph 7; or prohibit the reporting of financial or account information by the Fund or its duly authorized agents or delegates required pursuant to FATCA.
- (i) If you provide information or documentation that is in anyway misleading, or that fails to provide the Fund or its agents or delegates with the information and documentation requested pursuant to this paragraph 7 (whether or not such action or inaction leads to compliance failures by the Fund, or a risk of the Fund or its investors being subject to withholding tax or other penalties), the Fund reserves the following rights:
 - (i) to take any action and/or pursue all remedies at the Fund’s disposal including, without limitation, compulsory withdrawal or redemption of your Interest in full or in part; and
 - (ii) to hold back from any withdrawal or redemption proceeds in respect of Interests so withdrawn or redeemed, any liabilities, costs, expenses or taxes arising (directly or indirectly) from such action or inaction; and
 - (iii) you shall have no claim against the Fund, or its agents or delegates, for any form of damages or liability as a result of actions taken or remedies pursued by or on behalf of the Fund in order to comply with FATCA (or any other withholding or information reporting laws) or avoid any withholding.
- (j) You hereby indemnify the Fund, Crypto Lotus, and each of their respective principals, managing members, general partners, managers, members, limited partners, directors, officers, owners, employees, delegates and agents (the “FATCA Indemnified Party”) and hold them harmless from and against any withholding and any FATCA (or other withholding or information reporting) related liability, action, proceeding, claim, demand, costs, damages, expenses (including legal expenses) penalties or taxes whatsoever which a FATCA Indemnified Party may suffer or incur as a result of any action or inaction (directly or indirectly) of you (or any related person) described in this paragraph 7. This indemnification shall survive the Subscriber’s death or disposition of its Interests in the Fund.

For the purposes of this Subscription Agreement, “FATCA” means:

Sections 1471 to 1474 of the U.S. Internal Revenue Code of 1986 and any associated legislation, regulations or guidance (collectively, the “Internal Revenue Code”), or any other legislation, regulations or guidance enacted in any jurisdiction which seeks to implement similar tax reporting, tax information exchange and/or withholding tax regimes; and

any intergovernmental agreement, treaty, regulation, guidance or any other agreement between the U.S. and any other jurisdiction (including any government bodies in any other such jurisdiction), entered into in order to comply with, facilitate, supplement or implement the legislation, regulations or guidance described in the immediately preceding subparagraph.

- 8. You agree to indemnify and hold harmless the Fund, Crypto Lotus, and of their respective principals, managing members, general partners, directors, managers, members, limited partners, officers, owners, employees, delegates and agents (each, an Indemnified Party), from and against any and all costs, claims, demands,

liabilities, expenses, damages or losses including, without limitation, consequential losses and loss of profit and all interest, penalties and legal and other professional costs and expenses due to, or arising out of, breach of any of the representations, warranties, covenants or agreements by the Subscriber contained in this Subscription Agreement.

9. Any Indemnified Party, FATCA Indemnified Party or other identifiable person who is not a party to this Subscription Agreement may enforce any rights granted to it pursuant to the FATCA-related provisions of this Subscription Agreement in its own right as if it were a party to this Subscription Agreement. Except as expressly provided in the foregoing sentence, a person who is not a party to this Subscription Agreement shall not have any rights under the Contracts (Rights of Third Parties) Law, 2014 (as amended) to enforce any term of this Subscription Agreement. Notwithstanding any term of this Subscription Agreement, the consent of or notice to any person who is not a party to this Subscription Agreement shall not be required for any termination, rescission or agreement to any variation, waiver, assignment, novation, release or settlement under this Subscription Agreement at any time.
10. All documents and any monies will be sent by you, and to you, at your risk.
11. Interests allotted pursuant to any subscription by joint Investors will be registered in the names of all joint Investors. The equivalent of share certificates will not be issued in respect of the Interests. All written communications will be sent to the first named Investor at the address set out in Box 1 of the Subscription Form in Part III of this Subscription Agreement. Joint Investors will be treated as the joint owners of any Interests issued to them and of all associated rights and entitlements and: (i) any liability incurred to the Fund by any one or more of the joint Investors shall be the joint and several liability of all of them; (ii) a reference to an “Investor” in this and any related document shall be deemed to include reference to each of the joint Investors; (iii) dividends and other rights associated with the Interests shall be deemed to be owned jointly by the joint Investors; and (iv) where applicable, for joint applicants, each applicant individually authorizes the Fund, the Administrator and each of their delegates to act upon the written instructions of any one of the joint applicants in respect of the transfer or withdrawal or redemption of any of the Interests registered in the joint names, unless expressly agreed otherwise in writing. If the Fund is given written notice of the death or legal incapacity of one of the joint Investors, the Fund shall be entitled (but not required, unless so required by applicable law) to suspend any and all transactions related to the Interests until it has received the requisite documentation from a court of competent jurisdiction and signed instructions from the legal representatives or heirs of the deceased or incapacitated, together, if appropriate, with signed instructions from the remaining persons having an interest in the Interests.
12. You hereby acknowledge that all purchases and sales of Interests in the Fund are for your account and risk. You therefore agree to indemnify and hold harmless the Fund, Crypto Lotus, and their principals, managing members, general partners, managers, members, limited partners, directors, officers, owners, employees, delegates and agents from time to time against all liabilities, loss, damage, claims, costs and expenses whatsoever which may be incurred or suffered by any of them arising out of or in connection with the subscription, any subsequent subscription or any investment made in connection with the receipt and acceptance of your subscription funds, save and except where such liability, loss, damage, claims, costs and expenses have been incurred by the Fund, Crypto Lotus and/or their principals, managing members, general partners, managers, members, limited partners, directors, officers, owners, employees, delegates and agents as a result of their deliberate and willful default.
13. You certify that each of your responses to the Appendix to this Part II is accurate, acknowledge that the Fund relies on the accuracy of such responses for their regulatory compliance, understands that the Fund would not admit you absent such accurate responses, and accepts that you may incur liability for inaccurate responses. You further certify that you have accurately completed each other Appendix and other part of this Subscription Agreement.
14. You are not acquiring Interests with a view to, or for sale in connection with, any distribution of the Interests. You understand that the Interests are not registered under any securities laws, may not be transferred without the Fund’s consent, have no secondary market, do not offer daily or weekly liquidity, and are generally anticipated to provide for liquidity solely pursuant to withdrawals or redemptions rather than transfers or sales to third parties. You understand that the Fund has no intention to register the Interests with the U.S. Securities and Exchange Commission (the “SEC”) or any U.S. state and is under no obligation to assist you in obtaining or complying with any exemption from such registration requirements. The Fund may require that a proposed transferee meet appropriate financial suitability standards and that you, as transferor, furnish a legal opinion satisfactory to the Fund and its counsel that the proposed transfer complies with applicable federal, state and any other applicable securities laws. An appropriate stop transfer instructions may be placed with respect to any Interest.

15. You agree that the Fund may compulsorily withdraw or redeem all or any portion of your Interests in accordance with the Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, and Governing Document, and, in the event its Interests are compulsorily withdrawn or redeemed, you are required to allow your Interests to be withdrawn or redeemed or transfer pursuant to the Governing Document, you will be required to pay on demand all costs and expenses (including attorneys' fees) incurred by or on behalf of the Fund in connection with such compulsory withdrawal or redemption or transfer, and the Fund may deduct such costs and expenses from your Interest prior to paying the proceeds of such withdrawal or redemption or transfer.
16. You acknowledge that Crypto Lotus is not registered as a commodity pool operator or commodity trading advisor with the U.S. Commodity Futures Trading Commission (the "CFTC").
17. You confirm that the Fund's offer of Interests was privately communicated to you. You acknowledge that you are not subscribing for Interests as a result of or subsequent to (i) any advertisement, article, notice or other communications published in any newspaper, magazine, publicly-accessible web site or similar media or broadcast over television or radio, or (ii) any seminar or meeting whose attendees, including you, had been invited as a result of, subsequent to or pursuant to any of the foregoing. The Fund does not affirmatively offer its Interests to prospective investors who are resident in Europe, the Fund does not otherwise market into Europe, and any prospective European investor or investor resident or located in Europe hereby confirms that the investor has relied on its own inquiry to the Fund and is considering such investment on its own initiative, and not on the solicitation by the Fund, Crypto Lotus or their affiliates or agents.
18. You understand that the Fund will not register as an investment company under the U.S. Investment Company Act of 1940 (the "Investment Company Act"), nor will it make a public offering of its securities within the United States. You understand that no accommodation is currently intended to be offered for investors who are subject to the so-called Volcker Rule.
19. No federal, state or other agency has made any finding or determination as to the fairness of the offering and the Interests have not been recommended or otherwise endorsed by any federal, state or other securities commission or other regulatory authority. Neither the SEC nor any state securities commission has approved or disapproved of the Interests or passed upon the adequacy or accuracy of the Private Placement Memorandum or the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable. Any representation to the contrary is a criminal offense.
20. If you are not a natural person, you represent that you were not formed for the purpose of investing in the Fund, you do not invest more than 40% of your total assets in the Fund, each of your beneficial owners participates in investments made by you pro rata in accordance with its interest in you and, accordingly, your beneficial owners cannot opt in or out of investments made by you, and your beneficial owners did not and will not contribute additional capital (other than previously committed capital) for the purpose of purchasing the Interests. (If you cannot make this representation, please strike it out and contact the Administrator.)
21. You accurately indicated on the cover page whether or not you are an ERISA investor to which this Item 21 applies. You represent that you have accurately responded to the "Benefit Plan Information" questions in the Appendix to this Part II and agree to promptly notify the Fund of any changes to such information. Benefit plan investors include, but are not limited to, corporate pension and profit sharing plans, "simplified employee pension plans," Keogh plans for self-employed individuals (including partners), individual retirement accounts, medical benefit plans, life insurance plans, church plans that have elected to be subject to ERISA, bank commingled trust funds or insurance company separate accounts for such plans and accounts, and, under certain circumstances, all or a portion of the general account of an insurance company. If you are, or are acting (including as a fiduciary) on behalf of, an employee benefit plan to which ERISA applies or another plan or account (such as an individual retirement account or Keogh plan) that, although not subject to ERISA, is subject to certain similar rules of the Internal Revenue Code (a "Plan") or any entity ("Plan Assets Entity") deemed for any purpose of ERISA or the Code to hold assets of any Plan due to investments made in such entity you certify and confirm as the fiduciary of the Plan or Plan Assets Entity (with respect to each Plan holding an investment in such Plan Assets Entity) ("Plan Fiduciary") responsible for the purchase of the Interest that: (a) you have been informed of and understand the Fund's investment objectives, policies, limitations, fee structure and strategies and that the decision to invest the assets of the Plan in the Fund was made with appropriate consideration of relevant investment factors including, without limitations, risks related to such investment, and the cash needs, investment policies, portfolio composition and appropriate liquidity and diversification of the Plan; (b) the Plan Fiduciary has determined that, after such consideration that the investment in the Fund is in accordance with the Plan Fiduciary's duties and responsibilities under ERISA; (c) the Plan's investment in the Fund does not violate and is not otherwise inconsistent with the terms of any legal

document constituting the Plan or any trust agreement thereunder; (d) the Plan's investment in the Fund has been duly authorized and approved by all necessary parties; (e) the Plan Fiduciary is authorized to make, and is responsible for, the decision to invest in the Fund, including the determination that such investment is consistent with the requirement imposed by Section 404 of ERISA that Plan investments be diversified so as to minimize the risks of large losses, and is qualified to make such investment decision; (f) the investment in the Fund is prudent for the Plan (taking into account any applicable liquidity and diversification requirements of ERISA); (g) the investment in the Fund is permitted under ERISA, the Internal Revenue Code, other applicable law and the Plan's governing plan documents; (h) neither Crypto Lotus nor any of its affiliates has acted as a fiduciary under ERISA with respect to such purchase and (i) the Plan is not subject to any investment prohibition or restriction that would prohibit the holding by the Fund of any security of any publicly-traded issuer. You will, at the request of Crypto Lotus, furnish Crypto Lotus with such information as Crypto Lotus may reasonably require to establish that the purchase by you or the operation of the Fund does not violate any provision of ERISA or the Code, including without limitation, those provisions relating to "prohibited transactions" by "parties in interest" or "disqualified persons," as defined therein.

You certify and confirm you are the named fiduciary of the Plan and in such capacity, contingent upon the assets of the Fund being considered for purposes of ERISA or Section 4975 of the Code to be "plan assets", and as authorized by the document constituting the Plan or any trust agreement thereunder, hereby appoints Crypto Lotus as "investment manager" (as defined in Section 3(38) of ERISA) with authority to manage the assets of the Plan invested in the Fund. You hereby certify and confirm that, contingent upon the assets of the Fund being considered for purposes of ERISA or Section 4975 of the Code to be "plan assets", (i) the trustee of the Plan will hold the Plan's Interests in trust, (ii) the Plan Fiduciary consents to the payment of the management fee ("Management Fee") to Crypto Lotus as described in the Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, and has determined that the arrangement for services by, and the payment of the Management Fee to, Crypto Lotus are reasonable; and (iii) you consent on behalf of the Plan to and authorize the operation of the Fund as described in the Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable.

The Plan Fiduciary certifies and confirms (i) that Crypto Lotus will not take steps to determine whether any security acquired by the Fund constitutes an employer security with respect to any Plan and will not monitor, or be responsible for, a Plan's compliance with the investment limits set forth in Section 407 of ERISA that apply to a Plan's holding of qualifying employer securities, and (ii) that the Plan Fiduciary will be solely responsible for ensuring compliance with the provisions of ERISA relating to your investment in, and holding of, employer securities.

If you are a Plan or Plan Asset Entity, you have provided in the Appendix hereto a true and complete list of (i) all fiduciaries with authority to select, retain or redeem Interests as an investment for the Plan and such fiduciaries' "affiliates" (as described below) and (ii) all fiduciaries who are financial institutions or broker-dealers. For purposes of the preceding sentence, affiliates of a person include (a) any person directly or indirectly, through one or more intermediaries, controlling, controlled by, or under common control with the person; (b) any corporation, partnership, trust or unincorporated enterprise of which such person is an officer, director, 10 percent or more partner, or highly compensated employee as defined in Section 4975(e)(2)(H) of the Code (but only if the employer of such employee is the plan sponsor); and (c) any director of the person or any employee of the person who is a highly compensated employee, as defined in Section 4975(e)(2)(H) of the Code, or who has direct or indirect authority, responsibility or control regarding the custody, management or disposition of plan assets involved in the transaction. For purposes of the preceding sentence, a named fiduciary (within the meaning of Section 402(a)(2) of ERISA) of a Plan with respect to the plan assets involved in the transaction and an employer any of whose employees are covered by the Plan will also be considered affiliates with respect to each other if such employer or an affiliate of such employer has the authority, alone or shared with others, to appoint or terminate the named fiduciary or otherwise negotiate the terms of the named fiduciary's employment agreement. You confirm and certify that you will promptly notify Crypto Lotus of any changes or additions to such list or if any of the statements in this paragraph 21 are no longer true and shall provide Crypto Lotus with such information as Crypto Lotus may reasonably require to establish that transactions with respect to Fund do not violate any provision of ERISA or the Code. You understand that the information in this paragraph 21 and the Appendix thereto will be relied upon by the Fund for purposes of determining whether the Fund will constitute a Plan Asset Entity and whether transactions in which the Fund may engage are exempt from the prohibited transaction rules of ERISA and the Code.

22. You represent, warrant and covenant that the amounts contributed by you to the Fund were not and are not directly or indirectly derived from activities that may contravene U.S. federal or state or non-U.S. laws and regulations, including anti-money laundering laws and regulations. You represent, warrant and covenant that no person has or will have any beneficial interest in the Interests to which this Subscription Agreement relates that has had any of its assets blocked under U.S. sanctions laws or has been identified by the U.S. Government

as a person whose assets are to be blocked under such laws. Neither you, nor any person controlling, controlled by, or under common control with, you, nor any person having a beneficial interest in you, or for whom you are acting as agent or nominee in connection with this investment, is (i) a country, person, or entity named on an Office of Foreign Assets Control (“OFAC”) list, (ii) a person or entity that resides or has a place of business in a country or territory named on such list, or (iii) a senior foreign political figure, an immediate family member or close associate of a senior foreign political figure within the meaning of the USA PATRIOT Act of 2001 (The Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, Pub. L. No. 107-56 (2001)). You agree to promptly notify the Fund of any change in information affecting this representation, warranty and covenant. You are advised that, by law, the Fund may be required to disclose your identity to OFAC. For purposes of this item:

- A “senior foreign political figure” is defined as a senior official in the executive, legislative, administrative, military or judicial branches of a foreign government (whether elected or not), a senior official of a major foreign political party, or a senior executive of a foreign government-owned corporation. In addition, a “senior foreign political figure” includes any corporation, business or other entity that has been formed by, or for the benefit of, a senior foreign political figure.
- “Immediate family” of a senior foreign political figure typically includes the figure’s parents, siblings, spouse, children and in-laws.
- A “close associate” of a senior foreign political figure is a person who is widely and publicly known to maintain an unusually close relationship with the senior foreign political figure, and includes a person who is in a position to conduct substantial domestic and international financial transactions on behalf of the senior political figure.

23. You represent and warrant that you have not been the subject of any Disqualifying Event (defined below). You agree to notify the Fund promptly if there is, or is likely to be, any change with respect to the representation contained in the preceding sentence and to provide such further information as the Fund may reasonably request to confirm the foregoing representation. You also agree that, should the Fund reasonably believe that you are, or are likely to become, subject to a Disqualifying Event, you will cooperate in the course of any actions taken by the Fund intended to avoid the Fund’s disqualification from relying on Regulation D of the Securities Act, which actions may include in the Fund’s discretion required withdrawal or redemption from the Fund or other restructuring of your Interests that would avoid you being treated as such a “covered person” under Rule 506(d) under the Securities Act. A nominee that holds the Interests for the account of another beneficial owner hereby makes the foregoing representations and agreements with respect to each such beneficial owner. “Disqualifying Event” shall mean any of the following:

- (i) any criminal conviction within the past ten years of any felony or misdemeanor:
 - a. in connection with the purchase or sale of a security;
 - b. in connection with making a false filing with the SEC; or
 - c. arising out of the conduct of the business of an underwriter, broker, dealer, municipal securities dealer, investment adviser or paid solicitor of purchasers of securities;
- (ii) any order, judgment or decree of any court of competent jurisdiction, entered within the past five years, that, at the time of any date on which the Fund will issue securities during which you are a beneficial owner of at least 20% of the Fund’s Interests (each such day, including the date on which you first become a beneficial owner of at least 20% of the Fund’s Interests, an “Offering Date”), restrains or enjoins you from engaging or continuing to engage in any conduct or practice:
 - a. in connection with the purchase or sale of a security;
 - b. in connection with making a false filing with the SEC; or
 - c. arising out of the conduct of the business of an underwriter, broker, dealer, municipal securities dealer, investment adviser or paid solicitor of purchasers of securities;
- (iii) a final order from a state securities commission (or an agency or officer of a state performing like functions); a state authority that supervises or examines banks, savings associations, or credit unions; a state insurance commission (or any agency or officer of a state performing like functions); a federal banking agency, the CFTC or the National Credit Union Administration, in each case, that,
 - a. at the time of a subscription date, bars you from:
 - i. associating with an entity regulated by such commission, authority, agency or officer;
 - ii. engaging in the business of securities, insurance or banking; or
 - iii. engaging in savings association or credit union activities; or
 - b. constitutes a final order based on a violation of any law or regulation that prohibits

fraudulent, manipulative, or deceptive conduct entered within 10 years of a subscription date;

- (iv) an order of the SEC entered pursuant to section 15(b) or 15B(c) of the U.S. Securities Exchange Act of 1934, as amended (the “Exchange Act”), or section 203(e) or (f) of the U.S. Investment Advisers Act of 1940, as amended (the “Advisers Act”), that, at the time of a subscription date:
 - a. suspends or revokes your registration as a broker, dealer, municipal securities dealer or investment adviser;
 - b. places limitations on your activities, functions or operations; or
 - c. bars you from being associated with any entity or from participating in the offering of any penny stock;
- (v) any order of the SEC entered within five years before a subscription date that, at the time of a subscription date, orders you to cease and desist from committing or causing a violation or future violation of:
 - a. any scienter-based anti-fraud provision of the federal securities laws, including without limitation section 17(a)(1) of the Securities Act, section 10(b) of the Exchange Act and Rule 10b-5 thereunder, section 15(c)(1) of the Exchange Act and section 206(1) of the Advisers Act, or any other rule or regulation thereunder; or
 - b. Section 5 of the Securities Act;
- (vi) any suspension that is in effect as of a subscription date or expulsion from membership in, or suspended or barred from association with a member of, a registered national securities exchange or a registered national or affiliated securities association for any act or omission to act constituting conduct inconsistent with just and equitable principles of trade;
- (vii) you have filed (as a registrant or issuer), or were named as an underwriter in, any registration statement or Regulation A offering statement filed with the SEC that, within five years before a subscription date, was the subject of a refusal order, stop order, or order suspending the Regulation A exemption, or is, at the time of a subscription date, the subject of an investigation or proceeding to determine whether a stop order or suspension order should be issued; or
- (viii) you are subject to a United States Postal Service false representation order entered within five years before a subscription date, or are, at the time of a subscription date, subject to a temporary restraining order or preliminary injunction with respect to conduct alleged by the United States Postal Service to constitute a scheme or device for obtaining money or property through the mail by means of false representations.

If you cannot make this representation, contact the Administrator.

24. If required under this Agreement, you have provided the Fund with a complete and duly executed IRS Form W-9 or IRS Form W-8, as applicable. You agree to notify the Fund in the event any information you provided on such forms becomes inaccurate. You agree to provide the Fund with a new completed and executed Form W-9 or Form W-8 upon request. If you are a U.S. person for U.S. federal income tax purposes, you certify, under penalty of perjury, that all information in such forms, including the Investor’s taxpayer identification number, is true, correct and complete. You further agree to provide all additional information reasonably requested by the Fund including for purposes of the Fund’s compliance with withholding and other requirements under the U.S. Foreign Account Tax Compliance Act (“FATCA”), and agree that the Fund may provide such information to the IRS or other appropriate authorities for purposes of FATCA compliance. You agree to provide all requisite documentation to avoid subjecting the Fund to FATCA withholding. Your failure to provide adequate information, or to otherwise comply with FATCA, may in the Fund’s discretion be grounds for compulsory withdrawal or redemption. You agree that, in the event that you cause FATCA- noncompliance by the Fund and withholding due to your being recalcitrant, the Fund shall be entitled to allocate such withholding to you to the extent permitted by law. You hereby agree that you shall, to the fullest extent permitted by applicable law, indemnify and hold harmless the Fund and its affiliates who are, or who are deemed to be, the responsible withholding agents for U.S. federal, state or local or foreign income tax purposes with respect to the Fund against all claims, liabilities and expenses of whatever nature relating to such person’s obligation to withhold and to pay over, or otherwise pay, any withholding or other taxes payable by the Fund with respect to you or as a result of you being an Investor in the Fund, except to the extent the Fund or its agent withholds amounts with respect to the Investor and does not timely or properly remit the withheld amounts to the applicable tax authorities and except you will have no indemnification obligation with respect to any fines, penalties, interest or similar amounts that may be assessed if the Fund or its agents fail to withhold, on a timely basis, amounts required to be withheld and remitted to the applicable tax authorities.

25. You hereby authorize the Fund to withhold and to pay over, or otherwise pay, any withholding or other taxes payable by it or any of its affiliates (pursuant to the Internal Revenue Code or any provision of U.S. federal, state, or local or foreign tax law) with respect to you or as a result of you being an investor in the Fund. If and to the extent that the Fund shall be required to withhold or pay any such withholding or other taxes, you shall be deemed for all purposes of the Governing Document to have received a payment from the Fund as of the time such withholding or other tax is required to be paid, which payment shall be deemed to be a distribution with respect to your Interests to the extent that you could have received a distribution from the Fund under the Governing Document but for such withholding. To the extent that the aggregate of such payments to you for any period exceeds the distributions that you would have been entitled to receive under the Governing Document but for such withholding, the Fund shall notify you as to the amount of such excess and you shall make a prompt payment to the Fund of such amount by wire transfer. You hereby authorize the Fund and its authorized agents to apply on your behalf for refunds of any withholding or other taxes paid or otherwise borne by the Fund with respect to which the Fund determines to seek a refund. The amount of any such refund received by the Fund shall be distributed among the Investors in the Fund in a manner which, to the greatest extent possible, reflects each Investor's allocable share of the taxes to which such refund relates, as equitably determined by the Fund.
26. **FOR INVESTORS IN A U.S. FUND: Power of Attorney:** Subject only to the acceptance of this Subscription Agreement by the applicable U.S. Fund, by signing this Subscription Agreement you hereby (a) request to be admitted to the applicable U.S. Fund as a Member or Limited Partner, as applicable, and request that the Fund reflect such admission in the relevant Fund's register of Members or Limited Partners, as applicable; (b) join in and agree to be bound by the Operating Agreement or the Limited Partnership Agreement, as applicable, as a Member or Limited Partner, as applicable; and (c) make, constitute and appoint, acting singly or together, each of Crypto Lotus, LLC, Kevin Fischer, Apneet Jolly, Joshua Goldbard, Aviad Haimi-Cohen, Nathana Sharma, and Shoshana O'Brien, acting through its board of managers or an equivalent and any of its authorized managers, members, limited partners, or officers and with power of substitution, your true and lawful agent and attorney, with full power and authority in your name, place and stead, to make, execute, acknowledge, record and/or file (i) the Operating Agreement or the Limited Partnership Agreement, as applicable, (ii) any certificate or other document required to effect the formation, continuation, qualification or dissolution of the applicable U.S. Fund in accordance with the terms of the Operating Agreement or the Limited Partnership Agreement, or which legal counsel to the applicable Fund deems necessary or desirable to comply with any federal, state or other law applicable to the applicable Fund, and (iii) any amendments to any of the foregoing adopted or otherwise made in accordance with the provisions of the Operating Agreement or the Limited Partnership Agreement, as applicable. The power of attorney granted hereby is a special power of attorney coupled with an interest and shall be irrevocable to the fullest extent permitted by law.
27. You hereby acknowledge and agree to comply with the "Investor Identification Requirements" attached hereto (which are subject to amendment by the Fund and the Administrator from time to time) and represent that all documents provided to the Fund or the Administrator pursuant thereto are true and correct.
28. Transfers of Interests will be allowed only when Crypto Lotus and the Administrator approve the transferee and are satisfied that the transfer complies with all applicable laws and regulations.
29. By executing this document, you are consenting to electronic delivery and giving permission for the Fund and its service providers and other representatives, to deliver via email any documentation, reports and other information to be delivered to you in connection with your investment in the Fund. Such information may include confidential information regarding the Fund, including but not limited to Investor and investment information. Certain information, at the discretion of the Fund, may be delivered to you by regular mail or courier. You also consent to the Fund transmitting information by email to you or to the Fund's service providers, advisors, accountants or others to whom Investor has requested that such information be provided.

You understand that contact via non-encrypted email, such as that expected to be used by the Fund, and the transmission of email data take place over public networks and therefore Investor assumes the risk that this information may be unprotected. Although the Fund and its service providers will take reasonable precautions regarding the integrity, confidentiality and security of information sent by email, neither the Fund nor any of its service providers or other representatives will be liable for interception, system failure or other problems that may result in incomplete or incorrect transmission. In addition, information transmitted by email may need to be disclosed to third parties, including regulatory authorities with jurisdiction over the Fund or its service providers, and could be accessed by unauthorized persons.

You agree to release the Fund and its service providers from any form of liability or loss associated with the communication of Fund information by email, including but not limited to investor and investment information. The Fund and its service providers make no warranties in relation to these matters and you accept the risks

associated with the use of email. The Fund and its service providers also reserve the right to intercept monitor and retain communications to and from their systems as permitted by applicable law.

You understand that to receive information by email, Investor will need Internet access, a valid email address and the ability to install or download such applications as the Fund may specify. If you wish to retain information sent by email, you will need access to a printer or other device to download and print or save such information. You also understand that it is your obligation to inform the Fund in the event that your email address changes. You may update your email address by contacting an appropriate representative of the Fund and providing an update.

This consent to electronic delivery and electronic communications will be effective immediately and will remain in effect unless and until you revoke it. At any time, you may revoke this consent and/or request paper copies of any documents, at no additional cost to you, by sending a written revocation and/or request to the Administrator using the contact information in Part I. You acknowledge that it may take up to 3 business days to process a revocation of consent to electronic delivery (or request for paper copies) from the date that your revocation or request is received by the Fund.

30. You understand that the Fund differs from some investment funds, in that it not only invests for investment returns, but it also acquires assets with the intent to support the blockchain community and the potentially revolutionary technology represented by virtual currencies, tokens, and related technologies. You confirm that you are familiar with the nature of virtual currencies, utility tokens, tokenized securities, and other instruments that the Fund may acquire, as well as blockchain technology in general, and that you have taken steps to understand it. You understand that the Fund is entitled to purchase some tokens for use rather than for investment, and that, although the Fund could thus benefit from such tokens such as to reduce expenses or to obtain access to investment or other opportunities, the purchase and use, exchange, or sale of such tokens may not in all cases have the purpose of favorably impacting the Fund's investment returns.
31. **You confirm that you are not a citizen of the Cayman Islands, resident in the Cayman Islands, Cayman Islands taxpayer, or otherwise subject to prohibitions on investing in investment vehicles formed under the laws of the Cayman Islands that are not fully regulated.**
32. In the event you make any subsequent investments in the Fund, you acknowledge that the representations and warranties contained in this Subscription Agreement will be deemed to be made again as of the date of such subsequent capital contribution.
33. This Subscription Agreement is governed by and construed in accordance with the laws of the State of Delaware.

Appendix to Part II

(see representation 7(a) above in Part II)

For all U.S. Persons and any person who is in the U.S. when investing, in this section, please indicate which standard of accredited investor describe(s) your status, either by circling the appropriate lettered section set out under each category or by writing the applicable letter(s) in the blanks provided at the beginning of the category description.

Accredited Investor

The Fund requires that you meet the standard for “accredited investor” set out below, defined as satisfying ONE of the below:

To indicate which Accredited Investor Standard you meet, either:

(1) Circle the accredited investor standard(s) below that apply to you; or

(2) Write in the following blank the letter(s) designating the accredited investor standard(s) below that apply to you

Type of accredited investor: ____

A. A natural person whose individual net worth, or joint net worth with spouse, at the time of purchase exceeds \$1,000,000.

Net worth for this purpose is assets minus liabilities, except that it excludes the value of the investor's primary residence and its mortgage debt, but includes as liabilities any negative equity in that residence (that is, the extent to which mortgage debt outstanding exceeds the estimated fair market value of the residence) and any increase in that mortgage debt within the past 60 days (other than to purchase the residence).

B. A natural person who had an individual income in excess of \$200,000 in each of the two most recent years, or joint income with spouse in excess of \$300,000 in each of those years, and has a reasonable expectation of reaching the same level of income in the current year.

 C. A corporation, limited liability company, partnership, Massachusetts or similar business trust, or organization described in Section 501(c)(3) of the Code, not formed for the specific purpose of acquiring the securities offered, with total assets in excess of \$5,000,000.

D. A bank as defined in Section 3(a)(2) of the Securities Act, or a savings and loan association or other institution as defined in Section 3(a)(5)(A) of the Securities Act whether acting in its individual or fiduciary capacity.

E. A broker or dealer registered pursuant to Section 15 of the Exchange Act.

F. An insurance company as defined in Section 2(13) of the Securities Act.

G. A investment company registered under the Investment Company Act.

H. A private business development company, as defined in Section 202(a)(22) of the Advisers Act, a business development company as defined in Section 2(a)(48) of the Investment Company Act, or a Small Business Investment Company licensed by the U.S. Small Business Administration under Section 301(c) or (d) of the Small Business Investment Act of 1958.

I. A plan established and maintained by a state, its political subdivisions, or an agency or instrumentality of a state or its political subdivisions for the benefit of its employees, if such plan has total assets in excess of \$5,000,000.

J. An employee benefit plan within the meaning of ERISA (including an individual retirement account) if the investment decision is made by a plan fiduciary which is either a bank, savings and loan association, insurance company or registered investment adviser.

K. An employee benefit plan within the meaning of ERISA (including an individual retirement account) if the employee benefit plan has total assets in excess of \$5,000,000.

L. An employee benefit plan within the meaning of ERISA (including an individual retirement account) that is a self-directed or participant-directed plan, where the decision to invest is made by those participants investing, and each such participant is an accredited investor.

M. A trust with total assets in excess of \$5,000,000, not formed for the specific purpose of acquiring the securities offered, whose purchase is directed by a sophisticated person.

For this purpose, a sophisticated person is one who has such knowledge and experience in financial and business matters that such person is capable of evaluating the merits and risks of the prospective investment.

N. Crypto Lotus, a manager or executive officer of Crypto Lotus, or an executive officer of the Fund.

Q. An entity in which all the equity owners are accredited investors described above.

Qualified Client

For all Investors, the Fund requires that you meet the standard for “qualified client” set forth below, defined as satisfying ONE of the below:

To indicate which Qualified Client Standard you meet, please write in the following blank the letter designating the qualified client standard below that applies to you: _____

Investor represents and warrants that the Investor is a natural person or “company” (as defined below) that at the time of becoming an Investor, including this investment:

☒ (A) has at least \$1,000,000 under the management of the Investment Manager,

or

(B) has a net worth (together, in the case of a natural person, with assets held jointly with a spouse) of at least \$2,100,000 (excluding the value of his or her primary residence),

or

(C) is a qualified purchaser as defined in Section 2(a)(51)(A) of the Investment Company Act of 1940.

“Company” means a corporation, partnership, association, a joint-stock company, a trust or an organized group of any of the foregoing, whether or not incorporated. However, “company” does not include an investment company registered or required to be registered under the Investment Company Act or exempt from registration under Section 3(c)(1) of such Act or a “business development company” (as defined in Section 202(a)(22) of the Investment Advisers Act) unless each of the equity owners of such entity is itself a “qualified client.”

Appendix to Part II

(see representation 21 above in Part II)

Please complete the following information regarding your status as a benefit plan investor.

Benefit Plan Information

- A. Are you, or are the assets to be invested by you in the Fund, subject to Part 4 of Title I of ERISA?
☐ Yes ☒ No
- B. Are you, or are the assets to be invested by you in the Fund, a tax qualified retirement plan, 401(k) plan, individual retirement account ("IRA"), Keogh plan or other entity subject to Section 4975 of the Code?
☐ Yes ☒ No
- C. Are you, or are the assets to be invested by you in the Fund, a group trust, bank collective investment trust, insurance company separate account or other entity whose underlying assets include plan assets of any "benefit plan investor" (as such term is defined in Section 3(42) of ERISA)?
☐ Yes ☒ No
- D. Are you, or are the assets to be invested by you in the Fund, an insurance company that is purchasing the Interest with assets of its general account?
☐ Yes ☒ No
- E. If you answered "Yes" to item C. or D., please complete the following representation by filling in the correct percentage:
- Throughout the period you hold the Interest, no more than ____% of the total value of the equity interests in you will at any time be held by "benefit plan investors" of ERISA within the meaning of 3(42) of ERISA or, in the case of an insurance company general account, no more than ____% of the general account as a whole will constitute plan assets of "benefit plan investors."¹
- F. Are you, or are the assets to be invested by you a "governmental plan," within the meaning of Section 3(32) of ERISA or a partnership, limited liability company or other entity in which such a governmental plan holds an interest sufficient to subject the entity to applicable state or local law governing governmental plans?
☐ Yes ☐ No
- G. Are you, or the assets to be invested by you subject to any other U.S. federal, state, local, non-U.S. or other laws or regulations that could cause the underlying assets of the Fund to be treated as assets of you by virtue of your investment in the Fund and thereby subject the Fund and Crypto Lotus (or other persons responsible for the investment and operation of the Fund's assets) to laws or regulations that are similar to the fiduciary responsibility or prohibited transaction provisions contained in Title I of ERISA or Section 4975 of the Code.
☐ Yes ☐ No

You agree to promptly notify the Administrator in writing if there is any change to the foregoing representations, including in the percentage as set forth above, and at such time or times as Crypto Lotus may request.

If you are a Plan or a Plan Asset Entity set forth a true and complete list of (i) all fiduciaries with authority to select and retain or redeem such Interest as an investment and such fiduciaries' "affiliates" (as defined in Paragraph 21 of the Subscription Agreement) and (ii) all fiduciaries who are financial institutions or broker-dealers. *You agree that you will promptly notify Crypto Lotus of any changes or additions to the list below.*

¹ For purposes of this item, a "benefit plan investor" as defined in Section 3(42) of ERISA includes employee benefit plans that are subject to the fiduciary provisions of ERISA (including, without limitation, pension and profit-sharing plans) and plans that are subject to Section 4975 of the Code (including, without limitation, IRAs and Keogh plans).

PART III **SUBSCRIPTION FORM**

By completing this Subscription Form you acknowledge that you have carefully read the latest Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, in respect of the Fund in which you plan to invest and the entire Subscription Agreement, including Part I (Guide to Subscription), Part II (Terms and Conditions of Subscription) and Part IV (Investor Identification Requirements), in addition to this Part III (Subscription Form). Investors must be 18 or over.

BOX 1		
	INVESTOR	CO-INVESTOR (if any)
<u>Full name of Investor(s):</u> <i>Interests held by more than one Investor will be held jointly with right of survivorship with full signing authority being given to each Investor.</i>	<i>Green Sands Investor Club B, LLC.</i> 	
<u>Citizenship of Investor(s):</u>	<i>USA</i>	
<u>(If applicable) Full name(s) of Representative(s) (if different than the Investor or co-Investor):</u> Legal Capacity of Representative:	<i>Reema Khan</i> <i>President</i> 	
<u>Contact details of Investor(s):</u> Mailing Address: Telephone (Home): Telephone (Business): Email:	 	
Names (individual or title, and entity name) and contact details of representative(s), service providers, or other person(s) who should receive a copy of all correspondence, statements, and other related documents:		
Name: Mailing Address: Telephone: Email:	<i>Lila Goldberg</i> 	<i>Shoshana O'Brien</i>

You consent to receiving all future correspondence and documents from the Fund related to your investment in the Fund, for such time as you remain an Investor in the Fund, by email to the email address set forth above. You will notify the Fund immediately in case of any change to your email address. You should not consent to receive any documents by email if it is not in fact possible for you to access email or receive to access email.

☒ Yes

☐ No

BOX 2

On the Cover Page, you have indicated the Fund(s) and amount(s) that you wish to invest. You should wire or transfer such amount(s) in accordance with the following instructions. **Information about the required timing for your delivery of Subscription Documentation in good order and funding is described on the second page of this document. The Fund may change subscription timing and any subscription terms without prior notice.**

Wire instructions and other payment instructions

Any bank charges or transaction fees in respect of electronic transfers or similar costs with regard to other methods of payment will be deducted from subscriptions and the net amount only invested in Interests.

Payment Instructions will be provided under separate cover.

BOX 3

I/We hereby instruct the Fund to pay any and all withdrawal (whether by way of withdrawal, compulsory withdrawal of my/our Interests or upon liquidation of the Fund) by wire transfer as follows (if a bank was used to wire funds to invest in the Fund, use the same bank account that was used to facilitate the subscription -- the Fund reserves the right but is not required to pay such payments by virtual currencies to a wallet or similar holding device identified by the Investor):

Name of Bank:

Address:

SWIFT:

ABA #:

For credit to:

Account #:

REF:

BOX 4

Investor Type - In order to permit Crypto Louts to potentially make periodic filings of Form PF with the SEC, please indicate (by checking the corresponding box) in the list from (a) through (o) below exactly one (1) category that best describes you:

- (a) ☐ Individual that is a United States person² (or a trust of such person)
- (b) ☐ Individual that is not a United States person (or a trust of such person)
- (c) ☐ Broker-dealer
- (d) ☐ Insurance company
- (e) ☐ Investment company registered with the SEC
- (f) ☐ Private Fund³
- (g) ☐ Non-profit
- (h) ☐ Pension plan (excluding governmental pension plan)
- (i) ☐ Banking or thrift institution (proprietary)
- (j) ☐ U.S. State or municipal Government Entity⁴ (excluding governmental pension plan)
- (k) ☐ U.S. State or municipal governmental pension plan
- (l) ☐ Non-U.S. sovereign wealth fund or non-U.S. official institution
- (m) ☐ An entity wholly owned by a person or entity described in (a)-(l) above or trust whose sole beneficiary is described in (a)-(l) above. If the above box is checked, please indicate which category in (a)-(l) above best describes the sole owner or beneficiary: _____

(list continues on next page)

² "United States person" has the meaning provided in Rule 203(m)-1 under the Advisers Act, which includes, among others, any natural person that is resident in the United States of America, its territories and possessions, any state of the United States, or the District of Columbia.

³ "Private Fund" means any issuer that would be an investment company as defined in Section 3 of the Investment Company Act but for Section 3(c)(1) or 3(c)(7) of that Act.

⁴ "Government Entity" means any U.S. state (including any U.S. state, the District of Columbia, Puerto Rico, the U.S. Virgin Islands or any other possession of the United States) or political subdivision of a state, including: (i) any agency, authority or instrumentality of the state or political subdivision; (ii) a plan or pool of assets controlled by the state or political subdivision or any agency, authority or instrumentality thereof; and (iii) any officer, agent, or employee of the state or political subdivision or any agency, authority or instrumentality thereof, acting in his or her official capacity.

- (n) ☐ A person or entity (other than as described in (m) above) that is not a United States person and about which the foregoing beneficial ownership information is not known and cannot reasonably be obtained because the beneficial interest is held through a chain involving one or more third-party intermediaries
- (o) ☒ Other (such as corporations that invest and are not listed above) : Investor Club LLC

Are you a fund of funds?⁵

☐ Yes ☒ No

Are you a Government Entity, or is your investment in the Partnership made on behalf of a Government Entity?

☐ Yes ☐ No

If yes, please indicate which Government Entity or Governmental Entities.

Are you (or each of you if joint tenants or tenants in common) both a citizen and resident of the United States?

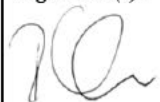
☒ Yes ☐ No

If not, please indicate country of citizenship: _____

If not, please indicate country of residence: _____

BOX 5

Signature(s):



Reema Khan, President Greens Sands Investment Club B, LLC

Co-Investor
/ Second Representative

I/We acknowledge fully understanding and accepting the risks of loss involved in investing, dealing and/or trading in securities and other financial instruments and transactions and the particular risks associated with investments in the Fund and further acknowledge that the Fund has drawn my/our attention to the risk factors set out in the Fund's Private Placement Memorandum, the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, and the accompanying Terms and Conditions (Part II of this Subscription Agreement), which I have carefully read and to which I agree.

⁵ "Fund of funds" means any Private Fund that invests 10% or more of its total assets in other pooled investment vehicles, whether or not they are also Private Funds or U.S. registered investment companies.

PART IV
INVESTOR IDENTIFICATION REQUIREMENTS

**CUSTOMER IDENTIFICATION PROGRAM AND
ANTI-MONEY LAUNDERING SUPPLEMENT**

A. IDENTIFICATION INFORMATION FOR Green Sands Investment Club B, LLC.

I. INDIVIDUALS:

Please complete **Appendix 1A**. If the investment is to be registered under more than one person's name, please complete Appendix 1A for each individual.

II. PRIVATE ENTITIES:

Please attach list of authorized signatories

Country of Organization: USA
Date of Incorporation/Establishment: Dec 7, 2017
Official registration number, if applicable: Delaware State File Number: 6651401
HBS Record ID Number: 342278

(if different from correspondence address)

Please indicate type of organization and complete applicable Appendix:

☒	Companies, Partnerships	Complete Appendix 1B
☐	Trusts	Complete Appendix 1C
☐	Not for Profit Organizations	Complete Appendix 1D
☐	Other, Please specify type: _____	Contact Administrator

III. FUND OF FUNDS OR NOMINEES

Please note if the subscriber is a fund of funds, the Administrator may require that additional documentation be completed by the registrar and transfer agent or equivalent (such as the administrator) of the fund of funds.

Country of Incorporation of Fund of Fund/Nominee: _____

Yes No
☐ ☐ Is this country an Approved Jurisdiction⁶?

If no, the Fund or Administrator or its agents may seek additional information.

B. DECLARATION REGARDING LOCATION OF BANK ACCOUNT (completed by all Subscribers)

The Subscriber declares that the subscription funds have been made from a bank account held in their name

at [REDACTED] [name of financial institution] in USA _____ [name of country]

Yes No
☒ ☐ Is your bank account located in an Approved Jurisdiction?

If no, the Fund or Administrator or its agents may seek additional information.

⁶ "Approved Jurisdictions": Australia, Austria, Bahamas, Barbados, Belgium, Bermuda, British Virgin Islands, Canada, Cayman Islands, Cyprus, Denmark, Finland, France, Germany, Gibraltar, Greece, Guernsey, Hong Kong, Iceland, Ireland, Italy, Japan, Jersey, Liechtenstein, Luxemburg, Malta, Netherlands, New Zealand, Norway, Portugal, Singapore, Spain, Sweden, Switzerland, United Kingdom, United States of America.

INDIVIDUAL PROFILE

Please also supply the identifying documentation listed for your Account Type in Appendix 2

Last Name			First Name		
Nationality	Country of Birth	Date of Birth	Language	Profession	

Legal domicile (Please provide exact **residential** address for tax reporting purposes -no P.O. boxes)

--

Contact Details

Home	Office	Cellular	Email

Employer (if applicable) & Nature of Business

If retired please state this but also note your previous employer and nature of business that provided your main Source of Wealth as indicated in the box below.

--

Source of Wealth (what transaction or business has generated the funds for this investment e.g. inheritance, sale of business, \$XX annual salary, etc.)

--

Political Connections (please check appropriate answer) YES ☐ / NO ☐

A political connection means any important public positions which any **beneficial owner/director or any person clearly related to any beneficial owner/director** may hold. These positions may include, but are not limited to, heads of state, ministers and deputy ministers, influential public or governmental officials, senior officials in major political parties, judges, military commanders, etc... Please list any such connections below.

--

Signature: _____

Name: _____

Title: _____ Date: _____

ENTITY PROFILE

Please also supply the identifying documentation listed for your Account Type in Appendix 2.

The undersigned hereby declare(s) that the beneficial owner(s) and director(s)/trustee(s)/general partner(s) of _____ [Name of company/partnership] is/are:

Beneficial Owner(s)*	Director(s)
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:	Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business:
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:	Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business:

* Please identify all individuals and entities that have ownership of 10% or more. If you require more space, please provide the same information on a separate sheet. For all entities with 10% ownership or more, please identify the natural person(s) that have ownership of 10% or more for each of those entities on a separate sheet.

General Nature of the Company/Partnership's operations

Political Connections (please check appropriate answer) YES ☐ / NO ☒

A political connection means any important public positions which any **beneficial owner/director or any person clearly related to any beneficial owner/director** may hold. These positions may include, but are not limited to, heads of state, ministers and deputy ministers, influential public or governmental officials, senior officials in major political parties, judges, military commanders etc. Please list any such connections below.

Name:	Political Connection:
Name:	Political Connection:

Bearer Share Company (please check appropriate answer) YES ☐ / NO ☒

A bearer share company is a company the shares of which are not registered with the issuer and may be transferable between parties. If you have answered Yes, please contact the Administrator immediately. Further information is required.

Signature:



Name: Reema Khan

Title President Date: _____

IDENTIFICATION INFORMATION FORM FOR A TRUST

Please also supply the identifying documentation listed for your Account Type in Appendix 2.

The undersigned hereby declare(s) that the Trustee(s)/Settlor(s)/Beneficiaries of _____
[Name of Trust] is/are:

Trustee*
Last Name/Entity**: First Name (if applicable): Date of Birth (if applicable): If Law Firm, name of Money Laundering Reporting Officer (MLRO):

If the Trustee is a Financial Institution, the Administrator may require additional documentation.

Beneficiaries*
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:

Settlor(s)*
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:

Protector or Controller (if applicable)
Last Name:
First Name:
Date of Birth/Incorporation/Establishment:
Place of Birth/Incorporation/Establishment:
Nationality (if different for individuals):
Occupation/Business

General Nature of the Trust (e.g. family trust, pension trust, charitable trust etc.)

--

Political Connections (please check appropriate answer) YES ☐ / NO ☐

A political connection means any important public positions which any **beneficial owner/director or any person clearly related to any beneficial owner/director** may hold These positions may include, but are not limited to, heads of state, ministers and deputy ministers, influential public or governmental officials, senior officials in major political parties, judges, military commanders etc. Please list any such connections below.

Name:	Political Connection:
Name:	Political Connection:
Name:	Political Connection:

* If the Beneficiary/Settlor/Trustee is an entity, please identify all beneficial owners on Schedule 1 below. Please identify all individuals and entities that have ownership of 10% or more. If you require more space, please provide the same information on a separate sheet. For all entities with 10% ownership or more, please identify the natural person(s) that have ownership of 10% or more for each of those entities on a separate sheet.

Signature: _____

Name: _____

Title _____ Date: _____

**IDENTIFICATION INFORMATION FORM FOR
PARTIES RELATED TO A NON-PROFIT ORGANIZATION**

Please also supply the identifying documentation listed for your Account Type in Appendix 2.

The undersigned hereby declare(s) that the entity entering into the arrangements with the Fund, and the controlling party of the entity is/are:

Controlling Party⁷
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:
Last Name: First Name: Date of Birth/Incorporation/Establishment: Place of Birth/Incorporation/Establishment: Nationality (if different for individuals): Occupation/Business: Source of Wealth:

* If you require more space to list all the controlling parties, please use a separate sheet Schedule 1 and attach.

Nature of the Organization's purposes and operations

Political Connections (please check appropriate answer) YES ☐ / NO ☐

A political connection means any important public positions which any **beneficial owner/director or any person clearly related to any beneficial owner/director** may hold These positions may include, but are not limited to, heads of state, ministers and deputy ministers, influential public or governmental officials, senior officials in major political parties, judges, military commanders etc. Please list any such connections below.

Name:	Political Connection:
Name:	Political Connection:
Name:	Political Connection:

Signature: _____

Name: _____

Title: _____ Date: _____

⁷ Controlling Party is typically defined as natural persons with the power to direct, manage, oversee and/or restrict the affairs, business or assets of an entity.

REQUIRED IDENTIFICATION DOCUMENTATION

The information provided in this Supplement to the Subscription Agreement forms part of the subscription documents executed by the Subscriber. The Fund and the Administrator reserve the right to request such additional information as is necessary to verify the identity of the Subscriber. The Fund may refuse to accept any application to subscribe if a prospective Subscriber delays in producing or fails to produce any information required for the purpose of verification and, in that event, any funds received will be returned without interest to the account from which the moneys were originally debited. If you are unable for any reason to provide a listed document, contact the Fund or the Administrator for guidance. If the Subscriber has any questions with regards to required documentation, please contact the Fund or the Administrator using the contact information in Part I for further guidance.

Note: For all individuals (natural persons), investing via any account type listed below, the following document is required:

- *Photocopy of a passport or a government-issued identification with the client's name, photograph and address (e.g., passport, U.S. state driver's license, a foreign driver's license, or other national identity card).*
- *If the passport or government-issued i.d. lacks an address or is more than three years old we must also obtain a photocopy of a recent utility or telephone bill sent to the client's name at the relevant address.*
- *A selfie with one of the photo identifications listed above.*

Account Type	Sample Registration	Client	Documentation or Actions Required
Individual	John Smith	Owner	▪ Name ▪ Address ▪ Date of birth ▪ SSN ▪ Signature and Date
Joint Tenant	John Smith & Jane Smith	Owner Joint Tenant	For Each Owner: ▪ Name ▪ Address ▪ Date of birth ▪ SSN ▪ Signature and Date
UGMA/UTMA	John Smith Custodian FBO Bobby Smith	Custodian Minor	For custodian and minor: ▪ Name ▪ Address ▪ Date of birth ▪ SSN For custodian: ▪ Signature and Date
Transfer on Death (Individual & JT Tenant)	John Smith TOD Bobby Smith	Owner/Jt Tenant Beneficiary	For owner/JT tenant: ▪ Name ▪ Address ▪ Date of birth ▪ SSN ▪ Signature and Date

Account Type	Sample Registration	Client	Documentation or Actions Required
Trust	John Smith Trustee Smith Family Trust U/A/D 1/1/1999	Trustee	For trustee: ▪ Name ▪ Date of birth ▪ SSN ▪ Signature and Date For trust: ▪ Name of trust ▪ Address of trust ▪ Trust date ▪ TIN ▪ The title and signature page of the trust agreement Or IRS Determination Letter
Corporation – Not Publicly Traded	ABC Corporation	Corporation	For signer: ▪ Name ▪ Signature and Date For corporation: ▪ Name of entity ▪ Address ▪ TIN ▪ Certified copy of Corporate Resolution including authorized signatures, dated within the past 6 months AND ▪ Government issued business license, or certificate of good standing Or IRS Determination Letter
Corporation – Publicly Traded	ABC Corporation	Corporation	For signer: ▪ Name ▪ Signature and Date For corporation: ▪ Name of entity ▪ Address ▪ TIN ▪ Ticker symbol ▪ Certified copy of Corporate Resolution including authorized signatures, dated within the past 6 months Or IRS Determination Letter

Account Type	Sample Registration	Client	Documentation or Actions Required
Guardianships/ Conservatorships	Jane Smith CNSV Mary Smith Jane Smith GDN Mary Smith	Guardian / Conservator	For both guardian/conservator and beneficiary: ▪ Name ▪ Address ▪ Date of birth ▪ SSN For guardian/conservator: ▪ Signature and Date For guardianship/conservatorship: ▪ Certified copy of court order
Sole Proprietorship	Joe's Coffee Shop	Owner	▪ Name of entity ▪ Name of owner ▪ Address ▪ Date of birth ▪ SSN ▪ Signature and Date
Limited Partnership	Smith & Jones LP	Authorized Signer	For signer: ▪ Name ▪ Signature and Date For partnership: ▪ Name of entity ▪ Address ▪ TIN ▪ Copy of partnership agreement Or IRS Determination Letter
Foundation/ Endowment	The Jimmy Fund	Authorized Signer	For signer: ▪ Name ▪ Signature and Date For foundation: ▪ Name of Foundation/Association ▪ Foundation/Association Documents Or IRS Determination Letter ▪ Evidence of authorized signers ▪ Address ▪ TIN For Endowment: ▪ Name of entity/Association ▪ Documents of Association or Certificate of Good Standing Or IRS Determination Letter ▪ Evidence of authorized signers ▪ Address ▪ TIN

Account Type	Sample Registration	Client	Documentation or Actions Required
Corporate Retirement Plan ³	Jeffrey Smith TTEE Smith Corp PSP	Plan	For signer: ▪ Name ▪ Signature and Date For Plan: ▪ Name of Corporate Retirement Plan ▪ Address ▪ TIN ▪ Evidence of authorized signers ▪ Certificate of Good Standing or confirmation from “freeerisa.com” of good standing Or IRS Determination Letter
Education Savings Account	The Trust Co. Cust John Smith FBO Bobby Smith ESA	Beneficiary Responsible Individual Depositor	For responsible individual, beneficiary, and depositor: ▪ Name ▪ Address ▪ Date of birth ▪ SSN For responsible individual and depositor: ▪ Signature and Date
Roth IRA	The Trust Co. Cust FBO John Smith Roth IRA	Owner	For owner: ▪ Name ▪ Address ▪ Date of birth ▪ SSN ▪ Signature and Date
Traditional IRA	The Trust Co. Cust FBO Jane Smith IRA	Owner	For owner: ▪ Name ▪ Address ▪ Date of birth ▪ SSN ▪ Signature and Date

Account Type	Sample Registration	Client	Documentation or Actions Required
Estate	Dan Doe EXEC Jane Doe U/A/D 6/21/99	Executor	For Executor ▪ Name ▪ Date of Birth ▪ SSN ▪ Signature and Date For Estate ▪ Name of Estate ▪ Address of Estate ▪ Estate date ▪ TIN ▪ Letter of Appointment/ Testamentary, dated within 60 days, or Small Estate Affidavit (if applicable under state law) ▪ Notarized Affidavit of Domicile if required by the state

NOTE:

***SSN/Identification Number:**

For U.S. persons or entities:

- § a U.S. taxpayer Identification Number which is generally:
 - for individuals, a social security number, or
 - for entities, an employer identification number;

For non-U.S. persons one or more of the following:

- § A U.S. taxpayer identification number;
- § Passport number and country of issuance;
- § Alien identification card number; or
- § Number and country of issuance of any other government-issued document evidencing nationality or
- § Residence and bearing a photograph or similar safeguard

****Address:**

For individuals:

- § A residential street Address;

For individuals who do not have a residential street Address:

- § A business street Address*
- § An Army Post Office (A PO) or Fleet Post Office (FPO) box number or
- § The residential or business street Address* of next of kin or of another contact individual;

or

For persons other than an individual (such as a corporation, partnership, or trust)

- § A principal place of business, local office, or other physical location

IRS FORM W-9

All U.S. Investors: Complete, sign, and include IRS Form W-9 (on the following pages of this Appendix 3) with your Subscription Agreement

Other Investors: if you are an investor requiring a different IRS form, please contact the Administrator using the contact information noted at the end of Part I of this Subscription Agreement.

**Request for Taxpayer
Identification Number and Certification**

**Give Form to the
requester. Do not
send to the IRS.**

Print or type See Specific Instructions on page 2.	1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.	
	2 Business name/disregarded entity name, if different from above	
	3 Check appropriate box for federal tax classification; check only one of the following seven boxes: ☐ Individual/sole proprietor or single-member LLC ☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=partnership) ▶ _____ Note. For a single-member LLC that is disregarded, do not check LLC; check the appropriate box in the line above for the tax classification of the single-member owner. ☐ Other (see instructions) ▶ _____	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from FATCA reporting code (if any) _____ (Applies to accounts maintained outside the U.S.)
	5 Address (number, street, and apt. or suite no.)	Requester's name and address (optional)
	6 City, state, and ZIP code	
7 List account number(s) here (optional)		

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the Part I instructions on page 3. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN* on page 3.

Note. If the account is in more than one name, see the instructions for line 1 and the chart on page 4 for guidelines on whose number to enter.

Social security number								
				-				
or								
Employer identification number								
				-				

Part II Certification

Under penalties of perjury, I certify that:

- The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
- I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
- I am a U.S. citizen or other U.S. person (defined below); and
- The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions on page 3.

Sign Here	Signature of U.S. person ▶	Date ▶
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General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. Information about developments affecting Form W-9 (such as legislation enacted after we release it) is at www.irs.gov/irw9.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following:

- Form 1099-INT (interest earned or paid)
- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)

- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding? on page 2.

By signing the filled-out form, you:

- Certify that the TIN you are giving is correct (or you are waiting for a number to be issued),
- Certify that you are not subject to backup withholding, or
- Claim exemption from backup withholding if you are a U.S. exempt payee. If applicable, you are also certifying that as a U.S. person, your allocable share of any partnership income from a U.S. trade or business is not subject to the withholding tax on foreign partners' share of effectively connected income, and
- Certify that FATCA code(s) entered on this form (if any) indicating that you are exempt from the FATCA reporting, is correct. See *What is FATCA reporting?* on page 2 for further information.

Note. If you are a U.S. person and a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

- An individual who is a U.S. citizen or U.S. resident alien;
- A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States;
- An estate (other than a foreign estate); or
- A domestic trust (as defined in Regulations section 301.7701-7).

Special rules for partnerships. Partnerships that conduct a trade or business in the United States are generally required to pay a withholding tax under section 1446 on any foreign partners' share of effectively connected taxable income from such business. Further, in certain cases where a Form W-9 has not been received, the rules under section 1446 require a partnership to presume that a partner is a foreign person, and pay the section 1446 withholding tax. Therefore, if you are a U.S. person that is a partner in a partnership conducting a trade or business in the United States, provide Form W-9 to the partnership to establish your U.S. status and avoid section 1446 withholding on your share of partnership income.

In the cases below, the following person must give Form W-9 to the partnership for purposes of establishing its U.S. status and avoiding withholding on its allocable share of net income from the partnership conducting a trade or business in the United States:

- In the case of a disregarded entity with a U.S. owner, the U.S. owner of the disregarded entity and not the entity;
- In the case of a grantor trust with a U.S. grantor or other U.S. owner, generally, the U.S. grantor or other U.S. owner of the grantor trust and not the trust; and
- In the case of a U.S. trust (other than a grantor trust), the U.S. trust (other than a grantor trust) and not the beneficiaries of the trust.

Foreign person. If you are a foreign person or the U.S. branch of a foreign bank that has elected to be treated as a U.S. person, do not use Form W-9. Instead, use the appropriate Form W-8 or Form 8233 (see Publication 515, Withholding of Tax on Nonresident Aliens and Foreign Entities).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a "saving clause." Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items:

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.
2. The treaty article addressing the income.
3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.
4. The type and amount of income that qualifies for the exemption from tax.
5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if his or her stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first protocol) and is relying on this exception to claim an exemption from tax on his or her scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity, give the requester the appropriate completed Form W-8 or Form 8233.

Backup Withholding

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS 28% of such payments. This is called "backup withholding." Payments that may be subject to backup withholding include interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, payments made in settlement of payment card and third party network transactions, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester,
2. You do not certify your TIN when required (see the Part II instructions on page 3 for details),

3. The IRS tells the requester that you furnished an incorrect TIN,

4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only), or

5. You do not certify to the requester that you are not subject to backup withholding under 4 above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See *Exempt payee code* on page 3 and the separate Instructions for the Requester of Form W-9 for more information.

Also see *Special rules for partnerships* above.

What is FATCA reporting?

The Foreign Account Tax Compliance Act (FATCA) requires a participating foreign financial institution to report all United States account holders that are specified United States persons. Certain payees are exempt from FATCA reporting. See *Exemption from FATCA reporting code* on page 3 and the Instructions for the Requester of Form W-9 for more information.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you no longer are tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account; for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of \$50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a \$500 penalty.

Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Line 1

You must enter one of the following on this line; **do not** leave this line blank. The name should match the name on your tax return.

If this Form W-9 is for a joint account, list first, and then circle, the name of the person or entity whose number you entered in Part I of Form W-9.

a. **Individual.** Generally, enter the name shown on your tax return. If you have changed your last name without informing the Social Security Administration (SSA) of the name change, enter your first name, the last name as shown on your social security card, and your new last name.

Note. ITIN applicant: Enter your individual name as it was entered on your Form W-7 application, line 1a. This should also be the same as the name you entered on the Form 1040/1040A/1040EZ you filed with your application.

b. **Sole proprietor or single-member LLC.** Enter your individual name as shown on your 1040/1040A/1040EZ on line 1. You may enter your business, trade, or "doing business as" (DBA) name on line 2.

c. **Partnership, LLC that is not a single-member LLC, C Corporation, or S Corporation.** Enter the entity's name as shown on the entity's tax return on line 1 and any business, trade, or DBA name on line 2.

d. **Other entities.** Enter your name as shown on required U.S. federal tax documents on line 1. This name should match the name shown on the charter or other legal document creating the entity. You may enter any business, trade, or DBA name on line 2.

e. **Disregarded entity.** For U.S. federal tax purposes, an entity that is disregarded as an entity separate from its owner is treated as a "disregarded entity." See Regulations section 301.7701-2(c)(2)(iii). Enter the owner's name on line 1. The name of the entity entered on line 1 should never be a disregarded entity. The name on line 1 should be the name shown on the income tax return on which the income should be reported. For example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a single owner that is a U.S. person, the U.S. owner's name is required to be provided on line 1. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity's name on line 2, "Business name/disregarded entity name." If the owner of the disregarded entity is a foreign person, the owner must complete an appropriate Form W-8 instead of a Form W-9. This is the case even if the foreign person has a U.S. TIN.

Line 2

If you have a business name, trade name, DBA name, or disregarded entity name, you may enter it on line 2.

Line 3

Check the appropriate box in line 3 for the U.S. federal tax classification of the person whose name is entered on line 1. Check only one box in line 3.

Limited Liability Company (LLC). If the name on line 1 is an LLC treated as a partnership for U.S. federal tax purposes, check the "Limited Liability Company" box and enter "P" in the space provided. If the LLC has filed Form 8832 or 2553 to be taxed as a corporation, check the "Limited Liability Company" box and in the space provided enter "C" for C corporation or "S" for S corporation. If it is a single-member LLC that is a disregarded entity, do not check the "Limited Liability Company" box; instead check the first box in line 3 "Individual/sole proprietor or single-member LLC."

Line 4, Exemptions

If you are exempt from backup withholding and/or FATCA reporting, enter in the appropriate space in line 4 any code(s) that may apply to you.

Exempt payee code.

- Generally, individuals (including sole proprietors) are not exempt from backup withholding.
- Except as provided below, corporations are exempt from backup withholding for certain payments, including interest and dividends.
- Corporations are not exempt from backup withholding for payments made in settlement of payment card or third party network transactions.
- Corporations are not exempt from backup withholding with respect to attorneys' fees or gross proceeds paid to attorneys, and corporations that provide medical or health care services are not exempt with respect to payments reportable on Form 1099-MISC.

The following codes identify payees that are exempt from backup withholding. Enter the appropriate code in the space in line 4.

- 1—An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2)
- 2—The United States or any of its agencies or instrumentalities
- 3—A state, the District of Columbia, a U.S. commonwealth or possession, or any of their political subdivisions or instrumentalities
- 4—A foreign government or any of its political subdivisions, agencies, or instrumentalities
- 5—A corporation
- 6—A dealer in securities or commodities required to register in the United States, the District of Columbia, or a U.S. commonwealth or possession
- 7—A futures commission merchant registered with the Commodity Futures Trading Commission
- 8—A real estate investment trust
- 9—An entity registered at all times during the tax year under the Investment Company Act of 1940
- 10—A common trust fund operated by a bank under section 584(a)
- 11—A financial institution
- 12—A middleman known in the investment community as a nominee or custodian
- 13—A trust exempt from tax under section 664 or described in section 4947

The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 13.

IF the payment is for . . .	THEN the payment is exempt for . . .
Interest and dividend payments	All exempt payees except for 7
Broker transactions	Exempt payees 1 through 4 and 6 through 11 and all C corporations. S corporations must not enter an exempt payee code because they are exempt only for sales of noncovered securities acquired prior to 2012.
Barter exchange transactions and patronage dividends	Exempt payees 1 through 4
Payments over \$600 required to be reported and direct sales over \$5,000 ¹	Generally, exempt payees 1 through 5 ²
Payments made in settlement of payment card or third party network transactions	Exempt payees 1 through 4

¹ See Form 1099-MISC, Miscellaneous Income, and its instructions.

² However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney reportable under section 6045(f), and payments for services paid by a federal executive agency.

Exemption from FATCA reporting code. The following codes identify payees that are exempt from reporting under FATCA. These codes apply to persons submitting this form for accounts maintained outside of the United States by certain foreign financial institutions. Therefore, if you are only submitting this form for an account you hold in the United States, you may leave this field blank. Consult with the person requesting this form if you are uncertain if the financial institution is subject to these requirements. A requester may indicate that a code is not required by providing you with a Form W-9 with "Not Applicable" (or any similar indication) written or printed on the line for a FATCA exemption code.

- A—An organization exempt from tax under section 501(a) or any individual retirement plan as defined in section 7701(a)(37)
- B—The United States or any of its agencies or instrumentalities
- C—A state, the District of Columbia, a U.S. commonwealth or possession, or any of their political subdivisions or instrumentalities
- D—A corporation the stock of which is regularly traded on one or more established securities markets, as described in Regulations section 1.1472-1(c)(1)(i)
- E—A corporation that is a member of the same expanded affiliated group as a corporation described in Regulations section 1.1472-1(c)(1)(i)
- F—A dealer in securities, commodities, or derivative financial instruments (including notional principal contracts, futures, forwards, and options) that is registered as such under the laws of the United States or any state
- G—A real estate investment trust
- H—A regulated investment company as defined in section 851 or an entity registered at all times during the tax year under the Investment Company Act of 1940
- I—A common trust fund as defined in section 584(a)
- J—A bank as defined in section 581
- K—A broker
- L—A trust exempt from tax under section 664 or described in section 4947(a)(1)
- M—A tax exempt trust under a section 403(b) plan or section 457(g) plan

Note. You may wish to consult with the financial institution requesting this form to determine whether the FATCA code and/or exempt payee code should be completed.

Line 5

Enter your address (number, street, and apartment or suite number). This is where the requester of this Form W-9 will mail your information returns.

Line 6

Enter your city, state, and ZIP code.

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have and are not eligible to get an SSN, your TIN is your IRS individual taxpayer identification number (ITIN). Enter it in the social security number box. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN. However, the IRS prefers that you use your SSN.

If you are a single-member LLC that is disregarded as an entity separate from its owner (see *Limited Liability Company (LLC)* on this page), enter the owner's SSN (or EIN, if the owner has one). Do not enter the disregarded entity's EIN. If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note. See the chart on page 4 for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local SSA office or get this form online at www.ssa.gov. You may also get this form by calling 1-800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at www.irs.gov/businesses and clicking on Employer Identification Number (EIN) under Starting a Business. You can get Forms W-7 and SS-4 from the IRS by visiting IRS.gov or by calling 1-800-TAX-FORM (1-800-829-3676).

If you are asked to complete Form W-9 but do not have a TIN, apply for a TIN and write "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, generally you will have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note. Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon.

Caution: A disregarded U.S. entity that has a foreign owner must use the appropriate Form W-8.

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if items 1, 4, or 5 below indicate otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on line 1 must sign. Exempt payees, see *Exempt payee* code earlier.

Signature requirements. Complete the certification as indicated in items 1 through 5 below.

1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments made in settlement of payment card and third party network transactions, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account)	The actual owner of the account or, if combined funds, the first individual on the account ¹
3. Custodian account of a minor (Uniform Gift to Minors Act)	The minor ²
4. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee ¹
b. So-called trust account that is not a legal or valid trust under state law	The actual owner ¹
5. Sole proprietorship or disregarded entity owned by an individual	The owner ³
6. Grantor trust filing under Optional Form 1099 Filing Method 1 (see Regulations section 1.671-4(b)(2)(i)(A))	The grantor ⁴
For this type of account:	Give name and EIN of:
7. Disregarded entity not owned by an individual	The owner
8. A valid trust, estate, or pension trust	Legal entity ⁴
9. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
10. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
11. Partnership or multi-member LLC	The partnership
12. A broker or registered nominee	The broker or nominee
13. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
14. Grantor trust filing under the Form 1041 Filing Method or the Optional Form 1099 Filing Method 2 (see Regulations section 1.671-4(b)(2)(i)(E))	The trust

¹ List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

² Circle the minor's name and furnish the minor's SSN.

³ You must show your individual name and you may also enter your business or DBA name on the "Business name/disregarded entity" name line. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

⁴ List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.) Also see *Special rules for partnerships* on page 2.

*Note. Grantor also must provide a Form W-9 to trustee of trust.

Note. If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records from Identity Theft

Identity theft occurs when someone uses your personal information such as your name, SSN, or other identifying information, without your permission, to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity or credit report, contact the IRS Identity Theft Hotline at 1-800-908-4490 or submit Form 14039.

For more information, see Publication 4535, Identity Theft Prevention and Victim Assistance.

Victims of identity theft who are experiencing economic harm or a system problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 1-877-777-4778 or TTY/TDD 1-800-829-4059.

Protect yourself from suspicious emails or phishing schemes. Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to phishing@irs.gov. You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration (TIGTA) at 1-800-366-4484. You can forward suspicious emails to the Federal Trade Commission at: spam@uce.gov or contact them at www.ftc.gov/idtheft or 1-877-IDTHEFT (1-877-438-4338).

Visit IRS.gov to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. commonwealths and possessions for use in administering their laws. The information also may be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payers must generally withhold a percentage of taxable interest, dividend, and certain other payments to a payee who does not give a TIN to the payer. Certain penalties may also apply for providing false or fraudulent information.

PART V

SUBSCRIPTION FORM – FURTHER INTERESTS

THIS DOCUMENT IS A SIMPLIFIED FORM OF THE SUBSCRIPTION AGREEMENT TO BE SIGNED ONLY BY INVESTORS WHO HAVE ALREADY SIGNED THE REGULAR FORM OF SUBSCRIPTION AGREEMENT BY VIRTUE OF A PREVIOUS INVESTMENT.

By completing this Subscription Form – Further Interests you acknowledge that you have carefully read the latest Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable, in respect of the Fund and the entire Subscription Agreement, including Part I (Guide to Subscription), Part II (Terms and Conditions of Subscription), Part III (Subscription Form) and Part IV (Investor Identification Requirements), in addition to this Part V (Subscription Form – Further Interests).

Please deliver the Subscription Form - Further Interests duly completed, to the Administrator as noted in Part I above.

This subscription is subject to the minimum investment amount indicated in the Fund's current Private Placement Memorandum or the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable.

Subscriber: _____

Provide the Investor's full legal name used in Part III of its original Subscription Agreement, and include the co-investor and representative name identified in Part III if applicable

I/We hereby subscribe for:

Amount Paid in Fiat: USD _____

Amount Paid in Crypto: Symbol (e.g. BTC, ETH, LTC, or other) and Amount (units): _____

Fund:

☒ **Crypto Lotus Fund A, L.P.**

Amount Paid in Fiat: USD _____

Amount Paid in Crypto: Symbol (e.g. BTC, ETH, LTC, or other) and Amount (units): _____

☐ **Crypto Lotus Fund B, LLC**

Amount Paid in Fiat: USD 400,000

☐ **Crypto Lotus Fund B (International), Ltd.**

Intended Effective Date of Investment: [indicate month date, year]: _____

(for example, January 1, 2018)

Holidays may cause deadlines to be earlier, and may cause the effective date of investment to be later.

Subscription requests will be irrevocable. If subscription documentation and funding is not received in good order by the due dates of each, your subscription will be effective the next subscription date (that is, it may be delayed a month or more, during which time you will not participate in the Fund's gains or losses)

The Funds may accept or reject your subscription for Interests. Your subscription is subject to the entirety of the documentation in the Subscription Agreement, including Parts I, II, III and IV of the Subscription Agreement.

The required timing for your delivery of this Subscription Form -- Further Interests in good order and funding is described on the second page of the Funds' current Subscription Documentation. The Funds may change subscription timing and any subscription terms without prior notice; such changes of terms apply to this Subscription Form -- Further Interests.

Representations:

The Investor hereby represents and warrants and confirms that the representations and other statements made by the Investor in their original Subscription Agreement remain true and correct in all respects for this subscription for further Interests.

Signature(s):



Reema Khan, President. Green Sands Investment Club B, LLC.
Investor / Representative

Date: _____

General Partner Acceptance

To be completed by the General Partner only

Name: _____

Signature: _____

PART VI

WITHDRAWAL OR REDEMPTION NOTICE

This withdrawal or redemption notice should be sent by email as a pdf to the Administrator using the contact information that appeared on your original Subscription Agreement, or the information later instructed by the Fund. Neither the Fund nor the Administrator accept any responsibility for any errors in or liability arising from any such email, including any responsibility for any loss as a result of the non-receipt of any withdrawal notice sent by email.

Solicitation of Withdrawal

The Investor or Investors named below hereby request withdrawal or redemption of all or a portion of its or their Interests in the Fund(s) indicated below in accordance with the instructions provided below. The Investor hereby acknowledges that withdrawal or redemption is subject in all respects to the periods of notice and other terms, condition and restrictions specified in the Fund's Private Placement Memorandum. The Investor hereby represents and warrants in its individual capacity or as an authorized representative of a partnership or corporation or as a trustee or authorized representative of a trustee that he or she is the true and lawful owner of the Interests to which this request relates, with full power and authority to request withdrawal or redemption as herein requested.

This withdrawal or redemption is subject to the terms and conditions imposed by the Fund, including as to the date by which this notice must be received by the Fund, the method of valuation of Interests, and the timing of the payment of withdrawal or redemption proceeds to an Investor.

Withdrawal or Redemption Instructions

Withdrawing or Redeeming Investor: _____

Provide the Investor's full legal name used in Part III of its original Subscription Agreement, and include the co-investor and representative name identified in Part III if applicable

I/We hereby request to withdraw or redeem:

Fiat USD Amount or % of Interests: _____

(for in kind withdrawals, please contact the Administrator using the contact information noted at the end of Part I of this Subscription Agreement for further guidance)

- ☐ **Crypto Lotus Fund A, L.P. (withdrawal)**
- ☐ **Crypto Lotus Fund B, LLC (withdrawal)**
- ☐ **Crypto Lotus Fund B (International), Ltd. (redemption)**

Intended Effective Date of Withdrawal: End of [indicate month, year]: _____
(for example, June 2018)

Holidays may cause deadlines to be earlier, and may cause the effective date of withdrawal or redemption to be later.

Withdrawal or redemption requests will be irrevocable. If a withdrawal or redemption request is not received by the due date, your withdrawal or redemption will be effective the next available withdrawal or redemption date (that is, it may be delayed a month or more, during which time you will participate in the Fund's gains or losses).

Withdrawal or redemption proceeds will be sent by wire transfer in accordance with the payment instructions informed in the Investor's original Subscription Form. Withdrawing or Redeeming Investors remain subject to the Fund's minimum balance requirements.

Written notice of a withdrawal or redemption request is due on or before the deadline set out in the Funds' current Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable. Note that such deadlines are subject to change.

Signature(s):

Investor / Representative

Co-Investor/Second Representative (if any)

Date: _____

PART VII -

PRIVACY NOTICE

**CRYPTO LOTUS FUND A, L.P.
CRYPTO LOTUS FUND B, LLC
CRYPTO LOTUS FUND B (INTERNATIONAL), LTD.
CRYPTO LOTUS, LLC
Collectively (“CRYPTO LOTUS”)**

This Privacy Notice explains the manner in which CRYPTO LOTUS collects, utilizes and maintains nonpublic personal information about our Investors. This Privacy Notice applies only to Investors who are individuals.

We are committed to protecting your privacy and maintaining the confidentiality and security of your personal information. We are sending you this Privacy Notice to help you understand how we handle the personal information about you that we collect and how we use that information.

Categories of Information We Collect and May Disclose

We use the personal information collected about you in order to provide you with better service or to comply with law. We may collect nonpublic personal information about you from the following sources:

- Investor Questionnaires and Subscription Agreements, Limited Partnership Agreements, Limited Liability Company Operating Agreements, Memorandum and Articles of Association or other forms (for example, name, address, Social Security number, assets and income);
- Ownership records of CRYPTO LOTUS in which you are an Investor (such as the amount of your percentage ownership interest and any capital commitment); and
- Other interactions with us or our affiliates (such as discussions or other contacts with our staff, via telephone, written correspondence, and electronic media).

We may disclose nonpublic personal information we collect about you to our affiliates (including those who are involved in the operation, administration or management of, or the sale of interests in CRYPTO LOTUS) and nonaffiliated service providers, only as permitted by law. For example, we may share nonpublic personal information about you in the following situations:

- In connection with the administration and operations of the CRYPTO LOTUS, including disclosure to attorneys, accountants, brokers, dealers, auditors, administrators, or companies that assist us with mailing statements or processing your transactions, or other professionals;
- In connection with the periodic financial reports that include capital account balances;
- To respond to a subpoena or court order, judicial process or regulatory inquiry; and
- At your direction or with your consent, including upon your authorization to disclose such information to persons acting in a fiduciary or representative capacity on your behalf.

The information of our former Investors is treated in the same manner as the information of our current Investors.

Confidentiality and Security

We have always considered the protection of sensitive information to be a sound business practice and a foundation of customer trust. We protect personal information we collect about you by maintaining physical, electronic and procedural safeguards.

Within CRYPTO LOTUS we restrict access to nonpublic personal information about you to those employees who need to know that information to provide products or services to you.

Further Information

We reserve the right to change this Privacy Notice at any time. The examples contained within this notice are illustrations and are not intended to be exclusive. This notice complies with recently enacted Federal law regarding privacy. You may have additional rights under other foreign or domestic laws that may apply to you.

EXHIBIT B

C THE LAW OFFICE OF A ARMELO G. CHIMER

9449 S. Kedzie Ave, Evergreen Park, IL 60805
708-261-0727 • cgchimera@chimeralaw.com

Crypto Lotus Fund A, LP
Attn: Kevin Fischer
k@cryptolotus.com

February 9, 2021

VIA EMAIL

Re: Demand For Immediate Payment For Liquidation

Mr. Fischer:

Reference is made to the investment (the “Investment”) by Green Sands Investment Club B, LLC (“Green Sands”) in Crypto Lotus Fund A, LP (“the Company”) in the original principal amount of \$585,000 USD (the “Principal”). On information and belief, the Principal has yielded significant increase in value (the “Return” and together with the Principal, the “Capital Account Balance”) concurrent with the increasing value of the Company, but Green Sands is unable to determine the amount of the Return because you have failed to provide the capital account statements (“Statements”) required by the terms of the Investment for Green Sands capital account (“Capital Account”).

On behalf of and as counsel for Green Sands, this letter is to demand that, before 5PM Pacific Standard Time on February 10, 2021:

- (i) immediate repayment of the entire Principal;
- (ii) a copy of all Statements from fiscal quarter 1 2019 through the present (the “Nonreported Period”); and
- (iii) immediate payment of the Capital Account Balance (to the extent the Capital Account Balance exceeds the Principal).

Funds should be paid via ACH Wire Transfer in immediately available funds to the account previously designated by Green Sands in connection with the Investment.

While Green Sands hopes to resolve this issue amicably, **failure to timely respond to this demand may result in significant legal action against you** and Green Sands will not hesitate to protect its interests to the fullest extent allowed by law.

I. GREEN SANDS HAS MADE SEVERAL ATTEMPTS TO RESOLVE THIS AMICABLY.

Green Sands originally requested the return of the Capital Account Balance in June 2020. Over the next half year, Green Sands exercised extraordinary patience as you repeatedly delayed repayment of the Capital Account.

First, you represented to Green Sands that payment would be made in June 2020; then, you delayed repayment until August 2020; then, you delayed repayment until December 2020. Most recently, you informed Green Sands to expect repayment by Monday, February 8, 2021.

Green Sands patience with this regard does not and shall not constitute a waiver of any of its rights under applicable law or pursuant to the Investment.

That said, Green Sands exercised extraordinary patience despite your repeated and unjustified delays in an attempt to resolve the situation amicably.

II. GREEN SANDS RELIED ON YOUR REPRESENTATIONS TO THE DETRIMENT OF ITS OWN REPUTATION.

Green Sands and its members relied on your representations as to the timing of repayments described above. As Green Sands conveyed your repeated delays to investors, your delays and misrepresentations have reflected poorly on Green Sands and its ability to administer investments on behalf of its members. Members of Green Sands are now threatening Green Sands and its principals with lawsuits because of your failures to provide the Statements and meet the timelines you set out above.

Even full repayment of the Capital Account Balance at this time will still not repair Green Sands' reputation in the eyes of its Members.

III. FAILURE TO COMPLY MAY RESULT IN SIGNIFICANT LEGAL ACTION AGAINST YOU

Failure to comply with this demand may result in significant legal action against you, including a lawsuit against the Company and against you personally.

Such action may include, but not be limited to, an action for accounting, fraud, breach of contract under the terms of the Investment, and breach of fiduciary duty.

Damages requested will include, but may not be limited, to (i) specific performance for the release of the Statements, (ii) damages equal to the entire Capital Account Balance, (iii) special damages for business interruption and reputational damage to Green Sands, (iv) punitive damages up to the Constitutional limit of 9 times the actual damages described above, and (v) prejudgment interest to the maximum extent allowed under the law.

Only by providing all the Statements demanded herein and full repayment of the Principal (and to the extent greater than the Principal, the Capital Account Balance) by 5PM Pacific Standard Time on February 10, 2021 will these demands be satisfied.

Nothing contained in this letter is to be construed as an offer or counter-offer, or a waiver of any rights, but rather a proposal to negotiate in good faith.

Please direct any questions or comments regarding this matter to me at my email address below.

Very truly yours,

Carmelo Chimera, Attorney at Law

cgchimera@chimeralaw.com

708-261-0727

CC: Green Sands
Reema Khan, Green Sands (via email)
Jonas Norr
Josh Hill

EXHIBIT C

March 19, 2021

To:
Green Sands Investment Club B, LLC
Attn: Reema Khan
reema@greensandsequity.com

VIA EMAIL

Re: Agreement for repayment to Green Sands Investment Club B, LLC

Dear Reema:

Reference is made to the investment (the “Investment”) by Green Sands Investment Club B, LLC (“Investor”) in Crypto Lotus Fund A, LP (“the Company”) in the original principal amount of \$585,000 USD (the “Principal”). The Investor takes the position that it has repeatedly demanded the repayment of the Principal plus all accrued profit and interest (the “Return” and together with the Principal, the “Capital Account Balance”). The Company disputes the Investors’ position. This side letter agreement (“Agreement”) is to formalize the satisfaction of the remaining Capital Account Balance.

1. **Withdrawal of Capital Account Balance.** Notwithstanding any prior agreements or anything contained in the documents consummating the Investment pursuant to which the terms of the Investment are set forth (the “Investment Documents”), the Investor shall have the right to make a withdrawal of all or any part of its Capital Account Balance on written notice to the Company (a “Withdrawal Notice”). Thereafter, the Company shall make full payment of the Capital Account Balance within thirty (30) calendar days of receipt of the Withdrawal Notice (such 30 day period, the “Withdrawal Notice Period”), such payment to be made in immediately available funds by ACH Wire transfer to the account or accounts set forth by the Investor in the Withdrawal Notice. For the avoidance of doubt, the Investor’s Capital Account Balance for purposes of such withdrawal shall be determined as of the last day of the calendar month immediately preceding the month in which such Withdrawal Notice is issued.

2. **Information Rights.** On the last day of each calendar quarter hereafter, the Company will provide the Investor an estimate of the Investor’s net asset value (the “NAV”).

3. **Timing of Withdrawal.** As of the date of this Agreement, the Company understands the Investor intends to issue a Withdrawal Notice as of April 1, 2021 based on the NAV of the Capital Account Balance as of close of business March 31, 2021, which withdrawal shall be dependent upon the Investor’s satisfaction with the NAV as of such date. Nothing contained in this paragraph 3 shall be construed to constrain or otherwise limit the Investor’s rights under paragraphs 1 or 2 above.

4. **No Waiver of Certain Claims.** The Company understands and agrees that by acknowledging and accepting this Agreement, the Investor does not waive any claims, rights, or

causes of action available under the Investment Documents and applicable law which exist as of the date of this Agreement, whether now known or hereafter discovered, which relate to the Company's not redeeming the Investor's investment prior to the NAV of the Capital Account Balance as of close of business December 31, 2020. However, in exchange for this Agreement, the Investor hereby waives and releases all claims, lawsuits, causes of action, actions, and allegations whatsoever, related to any attempt to redeem the Investor's Capital Account Balance between (i) as of January 1, 2021, based on the NAV of the Capital Account Balance as the close of business December 31, 2020, and (ii) as of April 1, 2021 (including 30 days' notice), based on the NAV of the Capital Account Balance as of March 31, 2021.

5. **Notices.** All notices, requests, demands, claims, and other communications hereunder will be in writing and given in the manner provided for in the Investment Documents, with a copy for convenience only (Which shall not constitute notice) to:

Carmelo G. Chimera
Senior Counsel, Green Sands Equity
carmelo@greensandsequity.com

Sam Lieberman
Sadis & Goldberg LLP
551 Fifth Ave. 21st Floor
New York, NY 10176
slieberman@sadis.com

6. **Severability.** Any term or provision of this Agreement that is held invalid or unenforceable by a court of competent jurisdiction in any situation shall not affect the validity or enforceability of the remaining terms and provisions hereof.

7. **Assignment.** This Agreement shall be binding upon and inure to the benefit of the Parties named herein and their respective successors and permitted assigns. No Party may assign, delegate or otherwise transfer either this Agreement or any of its rights, interests, or obligations hereunder without the prior written approval of each other Party.

8. **Governing Law & Jurisdiction.** This Agreement shall be governed by and construed in accordance with the laws and in the jurisdiction as set forth in the Investment Documents.

9. **Amendment and Waiver.** No amendment of any provision of this Agreement shall be valid unless the same shall be in writing and signed by all the Parties hereto. No waiver by any Party of any provision of this Agreement or any default or breach of covenant hereunder, whether intentional or not, shall be valid unless the same shall be in writing and signed by the Party against whom the waiver is to be effective nor shall such waiver be deemed to extend to any prior or subsequent default or breach of covenant hereunder or affect in any way any rights arising by virtue of any prior or subsequent such occurrence.

10. **Attorney's Fees.** In the event the Investor takes any action or initiates any dispute, claim, or cause of action to enforce its rights hereunder, including for the collection of any

payments owed to the Investor hereunder (each, a “Claim”), and is the prevailing party, then the Investor shall be entitled to recover from the Company the Investor cost, fees, and expenses, including reasonable attorney’s fees, associated with the prosecution of such Claim. Similarly, if the Investor initiates a dispute claim, or cause of action to enforce its rights hereunder, and the Company is the prevailing party, then the Company shall be entitled to recover from the Company the costs, fees, and expenses, including reasonable attorney’s fees, associated with the prosecution of such Claim.

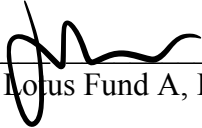
11. **Construction.** The Parties have participated jointly in the negotiation and drafting of this Agreement. In the event an ambiguity or question of intent or interpretation arises, this Agreement shall be construed as if drafted jointly by the Parties and no presumption or burden of proof shall arise favoring or disfavoring any Party by virtue of the authorship of any of the provisions of this Agreement. Any reference to any law shall be deemed also to refer to all rules and regulations promulgated thereunder, unless the context requires otherwise. The word “including” shall mean including without limitation. “Person” means any natural person, corporation, general partnership, limited partnership, limited liability company or partnership, proprietorship, other business organization, trust, union, association or governmental or regulatory entities, department, agency or authority. Section headings are provided for convenience purposes only and shall not affect the meaning or construction of the substantive provisions contained herein. The Recitals are hereby incorporated by reference as if fully set forth herein. Pronouns shall be construed to refer to the masculine, feminine, and neutral and to the singular or plural as context requires.

12. **Counterparts.** This Agreement may be executed in any number of counterparts, each of which shall be an original but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile and electronic mail (including portable document format (.PDF) and any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com).

13. **Entire Agreement.** This Agreement supplements the Investment Documents. This Agreement, together with the Investment Documents (including the documents referred to herein) constitute the entire agreement among the Parties and supersedes any prior understandings, agreements, or representations by or among the Parties, written or oral, to the extent they relate in any way to the subject matter hereof. Where this Agreement conflicts with the Investment Documents, this Agreement shall control.

[Remainder Of Page Intentionally Left Blank. Signature Page Follows.]

Sincerely,



Crypto Lotus Fund A, LP

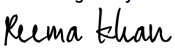
By: _____

Its: _____

ACKNOWLEDGED AND AGREED:

GREEN SANDS INVESTMENT CLUB B, LLC

By: Green Sands GP, LLC, its Managing Member

DocuSigned by:

By: _____
315D68DC5F0407...

Name: Reema Khan

Its: Authorized Person

EXHIBIT D

Fwd:

From:

To:

Date:

----- Forwarded message -----

From **Carmelo Chimera** carmelo@green_and_equity.com

Date: Wed, Sep 1, 2021 at 7:45 AM

Subject: Re: Crypto Lotus, Notice of Withdrawal

To: Jonas Lauren Norr <jonas@cryptolotus.com>

Cc: Jo hua Mil tein jo_h@green_and_equity.com , Jo h Hill jhill@cryptolotu.com , Kevin Fi cher <k@cryptolotus.com> , Reema Khan <reema@greensandsequity.com> , Sam Lieberman <slieberman@sadis.com>

Good morning all,

@Sam, it was a pleasure speaking with you yesterday.

As we discussed, enclosed please find the correspondence I have available with respect to ongoing negotiation between Crypto Lotus and Green Sands. Green Sands may have additional communication. I have not included our repeated entreaties over the following months for some kind of NAV calculation. I'll reserve commentary on the content for now.

I have conferred with Green Sands, and the proposed system of providing liquidity with some holdback based on an estimate is unacceptable to us. Further, while I make no statements about the factual or legal content of the attached email threads, Crypto Lotus and Jonas in particular has shown a repeated pattern of using delay tactics and lack of communication to frustrate Green Sand's attempt to withdraw from the fund. Accordingly, with so much truth to any promises of further negotiations carry little weight with Green Sands and therefore, Green Sands insists on withdrawing from the Fund based on the only period for which a reliable, definitive NAV has been provided which is **March**.

At this point, no other outcome is acceptable to Green Sand. If Crypto Lotus will not agree, I've been instructed to inform you Green Sands will move forward with retaining a litigator to escalate this.

This email is for settlement purposes only and nothing contained herein shall be construed as an admission of any fact or point of law or a waiver of any right or claim hereunder.

Kind Regards,
Carmelo Chimera
Senior Legal Counsel
Green Sands Equity
San Francisco - Tokyo - Zurich - Singapore - Dubai
+1 708 261 0727 Office
+1 224 234 1112 Mobile
greensandsequity.com

OUT OF OFFICE: I will be out of office with limited access to phone and email September 1 - 3, September 10 - 13, and September 20 - 24. I will return your email from that time as soon as possible.

CONFIDENTIALITY NOTICE:

THIS E-MAIL IS MEANT FOR ONLY THE INTENDED RECIPIENT OF THE TRANSMISSION, AND MAY BE A COMMUNICATION PRIVILEGED BY LAW. IF YOU RECEIVED THIS E-MAIL IN ERROR, ANY REVIEW, USE, DISSEMINATION, DISTRIBUTION, OR COPYING OF THIS E-MAIL IS STRICTLY PROHIBITED. PLEASE NOTIFY US IMMEDIATELY OF THE ERROR BY RETURN E-MAIL AND PLEASE DELETE THIS MESSAGE FROM YOUR SYSTEM.

On Aug 18, 2021, at 10:00 AM, Carmelo Chimera <carmelo@greensandsequity.com> wrote:

Jona ,

I feared this response and I'm disappointed you would take such an indefensible position especially after remaining incommunicado for over two weeks.

This email is for settlement purposes only and nothing contain herein shall be construed as an admission of any fact or point of law or a waiver of any rights.

It's simple Green Sand tried to withdraw in March. You actively induced them to wait pending April NAV. Which you then refused/failed to provide - I now believe intentionally - to frustrate Green Sands' withdrawal.

And if I'm wrong, based on your track record you won't have July 31 until sometime in 2022, making it impossible to calculate Green Sands withdrawal.

The fact that you would say "we cannot violate the express terms of our agreement" is outright insulting given your complete and abject failure in honoring your end of the agreement.

We know what's going on here - the value tanked, and you don't have the capital to pay Green Sands what you owe. Instead of hiding behind a letter agreement you repeatedly breached, just be honest and perhaps we can work something out. But your constant shifting grounding, delay, and failure to communicate are unacceptable and will absolutely not lead to a resolution.

You have 12 days. Please use them wisely. We are happy to work with you - but your current approach is untenable.

Regards,
Carmelo Chimera

On Aug 18, 2021, at 9:46 AM, Jona Lauren Norr <jona_@cryptolotu.com> wrote:

Carmelo,

I apologize that we did not get back to you sooner but we wanted to take the time to conduct a thorough review of the agreements we have with you in respect to your request to withdraw on August 5th. We appreciate you following the proper procedure of filling out this form and submitting it to us. Having reviewed the request, however, our agreement is quite clear on this issue in that a withdrawal request becomes effective in the month immediately preceding the request. Thus, an August 5, 2021 withdrawal request cannot be effective any earlier than July 31, 2021. This would mean that the soonest we could fulfill your request is July 31st, and certainly not March or April. We can proceed with a July withdrawal however.

As noted in the past, we would like to work with Green Sands on ways to resolve outstanding issues. But we cannot violate the express terms of our agreements.

Best,

Jonas

On Aug 17, 2021, at 6:16 PM, Carmelo Chimera <carmelo@greensandsequity.com> wrote:

Good evening all,

@Sam, checking in on the below - my position hasn't changed, namely that ignoring us does not constitute a denial or defense to our withdrawal. That said, would appreciate an acknowledgement of the below.

The silence is at best rude and at worst a breach of our Letter Agreement.

Further, I think your client's failure to act here just proves that the delay with respect to calculating NAV are just an excuse, and their attempts to frustrate Green Sands' withdrawal are willful, which clearly evinces bad faith.

I'm hopeful you'll respond soon to confirm when we can expect the wire transfer and for how much - and I expect it to be consistent with your representations about the funds' total NAV and Green Sands' pro rata share of it.

Kind Regards,
Carmelo Chimera
Senior Legal Counsel
Green Sands Equity
San Francisco - Tokyo - Zurich - Singapore - Dubai
+1 708 261 0727 Office
+1 224 234 1112 Mobile
greensandsequity.com

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STRICTLY PROHIBITED. PLEASE NOTIFY US IMMEDIATELY OF THE ERROR BY RETURN E
MAIL AND PLEASE DELETE THIS MESSAGE FROM YOUR SYSTEM.

Hi Jona ,

This is really ridiculous and insulting offer. Our corporate general counsel has the settlement agreement which is quite clear on the matter as far as "notice". Word play will not work. Carmelo, copied, will respond fully. The obvious matter is that April 30th NAV was very high and then your portfolio crashed and you are wanting to delay so as not to have to create liquidity at the lower price. You have also not provided a NAV or any statement of balance to us in years. We asked to see NAV before cash out and you confirmed that even if the April 30th NAV is provided by last week of May we will still be able to cash us out by May 30th. CL has got to be the most unprofessionally run hedge fund we have ever come across in violation of all contracts, service agreements, and now in default of settlement agreement which supercedes all previous agreement. We can workout a payment but we cannot allow you to play games about notice and word play. You owe us full cash out per April 30th NAV. We will take you to court, there is no room for negotiation on the matter. If you would like to talk to us to workout a payment plan we are open to it but that is the only negotiation we can offer.

Josh

Sent from my iPhone

On Jun 8, 2021, at 10:59 PM, Jonas Lauren Norr <jonas@cryptolotus.com> wrote:

Josh

We would like to work something out with you.

At the same time, I do not think your email accurately reflects what transpired. A Withdrawal Notice is a specific form, with a specific request to redeem. Green Sands has submitted that specific form to Crypto Lotus in the past. But your April 23 email did not attach a Withdrawal Notice, and hedged on a withdrawal commitment by saying "In all likelihood." Our Repayment Agreement uses the capitalized term "Withdrawal Notice" to make clear that the Notice form is still required. So I am not sure why you think that Crypto Lotus should have interpreted your non-committal email as having the same effect as the Formal Withdrawal Notice that you previously would sign and send.

Instead of providing the required form, you emailed that "In all likelihood" you would like to withdraw. That is not a commitment to withdraw. My response reflects that I did not interpret it as a withdrawal. I did not respond "redeeming is not a problem." I responded "redeeming should not be a problem," because I understood you to be discussing something that was likely to occur in the future, but had not yet occurred.

In light of this misunderstanding, I propose we work something out where we waive the notice period as to the principal amount of your investment for an April 30, 2021 date, with the remaining amount staying in the Fund for now, until we get a formal Withdrawal Notice. This can strike a middle ground between our two positions, leading to a resolution that partly addresses each of our understanding of events. Please let me know when you are free to discuss.

Jonas

On Jun 8, 2021, at 8:03 AM, Joshua Milstein <josh@greensandsequity.com> wrote:

Jonas,
We do not want to go to court. We already settled with you with a mutual agreement. We need CL to complete its obligation. Our club members are angry and pushing to sue with very punitive terms. We are simply club operators trying to put out fires to work it out with you. If the majority votes to sue, we will not be able to hold off.

There is radio silence from your side since last Thursday. I can set up a call between you and Reema, GSE CEO if it helps. This matter needs to be attended to today!!!

Josh

Sent from my iPhone

On Jun 7, 2021, at 11:43 AM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hi Jonas,
You would be considered in default if we do not have a response with precise next steps today.

Josh

Sent from my iPhone

On Jun 3, 2021, at 1:41 AM, Jonas Lauren Norr <jonas@cryptolotus.com> wrote:

Hi Joshua,

We're working on this and will get back to you ASAP.

Jonas

On Jun 1, 2021, at 10:41 AM, Joshua Milstein <josh@greensandsequity.com> wrote:

Good Morning Jonas,
Hope you had a good holiday weekend. We need some precision on next step and payout ASAP.

Sincerely,
Josh Milstein
Senior Investment Analyst
greensandsequity.com

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Sent from my iPhone

On May 27, 2021, at 6:26 PM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hi Jonas,
Thank you for your response. Your general guidance estimates are helpful.

Here are the pertinent matters:

1- We requested the April 30 NAV to be delivered on May 7 and we confirmed that we would then want liquidity by May 30th. This is a clear notice to withdraw fully. No fund ever asks you to redeem blindly, we asked for the NAV to be given before the cash. To reconfirm redemption is based on April 30th NAV and cash out was to be delivered by May 30 but if there is a delay, we offered a solution to pay 50% of estimated pay out per April 30 NAV and remaining balance at issuance of April 30 NAV.

You told us and I quote, "Redeeming by May 30th should not be a problem"

2- You requested additional time to deliver the NAV indicating end of May. We are at end of May.

We have been very cooperative every step of the way despite escalations within our investor club, all we ask is that you honor your commitment. If the issue is literally the dependence on your fund auditor, pls give us a firm date which should be within a reasonable time frame so we can set expectations accordingly. It's a reasonable demand. The settlement agreement clearly states that we can withdraw any month not just on quarterly basis. It was Mr. Fischer's own advice to not cash out per March 31 NAV but to do so by April 30th NAV and that is exactly what we asked for.

Thank you and I look forward to a constructive response and resolution.

My Best,
Josh

Sent from my iPhone

On May 27, 2021, at 5:43 PM, Jonas Norr <jonas@cryptolotus.com> wrote:

Hi Josh,

I went back and looked at the agreement, and am attaching it here so we can find some clarity on this and get it resolved.

As for the NAV Estimates: The agreement calls for NAV estimates "on the last calendar day of each quarter." We provided you that estimate for March 31, 2021. For April, that is not the end of a quarter, but we are rushing to get you an estimate as soon as possible nevertheless. If you want an estimate, without the benefit of final administrator calculations, it is \$260,000,000. But please keep in mind that due to the Admin process being ongoing, the estimate could be off by give or take 20%. I hope to be able to pinpoint it with greater precision within the next week or so.

As for a withdrawal, you can withdraw on 30 days' notice, with a Withdrawal Notice. Looking at your email below, you did not tell us that you are withdrawing. You said, in an email, that "in all likelihood" you would seek to withdraw as of May 30th. We were just fine with that, but you did not respond to confirm that you are actually withdrawing. So I do not think you technically have provided the Withdrawal Notice that would be required. We can discuss waiving that 30 day notice period for you. But to consider that, I really need you to confirm, absolutely, in writing that you would like to redeem as of May 30, so that we can address the possibility of this internally.

Best,

Jonas

<Repayment Agreement to Green Sands Investments - Fully Executed.pdf>

On May 27, 2021, at 8:38 AM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hi Jonas,

Tomorrow is the last working day of May and you would be deemed in default of your settlement agreement as it was committed to us both in the agreement and further recent correspondence "Redeeming by May 30th should not be a problem, but providing you with April's NAV by May 7th is not within our control and likely will be a problem. That's simply not the schedule our Admins work on which is who we would exclusively depend on to deliver that data. End of May is more likely given how they've been able to report in the past."

At this point our club members are losing confidence and are pressing for legal escalation. We have two options:

- a) Provide NAV tomorrow and cash out by Tuesday June 1st 2021.
- b) Wire 50% of the cash out due by tomorrow and provide a precise date for April 31 NAV (cannot be later than June 7) and distribute the remaining balance at that time.

CL performance leading up to April end looks promising and extremely positive from all indication and update provided by Kevin. We would like to close off this 3.5 year engagement positively and with mutual gratitude rather than further legal battles. I hope you can comply so we can move forward.

Thank You

My Best,
Josh

Sent from my iPhone

On May 25, 2021, at 1:15 PM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hi Jonas,

Unfortunately that's not a sufficient response to our investors. I'm sure your admin is a professional service that can give you an exact date. Can you please reply with some precision

Thank you.

Joshua

Sent from my iPhone

On May 25, 2021, at 9:24 AM, Jonas Lauren Norr <jonas@cryptolotus.com> wrote:

Hi Josh,

Unfortunately, we are still waiting on the March and April NAVs from our fund admin. There's nothing much we can do about that, but you will be the first to know when we have this data.

Jonas

On May 24, 2021, at 4:49 AM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hello Jonas and Kevin,
We now have mounting pressure from the remaining club members to escalate, complaining about lack of transparency, reporting, and communication.

We understand that April 30th NAV was much higher than March 31 NAV. Clients also see the markets crashing and are concerned if Cryptolotus will follow through with its commitment. We are at the end of May and we wrote you 5 days ago asking about the expected date of April 30th NAV and cash out. We need an answer today. Per our settlement agreement we are to receive a valid and certified NAV and cash out before end of May. We only have 5 working days left in May.

Sincerely,
Josh Milstein
Senior Investment Analyst
greensandsequity.com

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Sent from my iPhone

On May 19, 2021, at 5:15 PM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hello Jonas,
I hope this message finds you well. I am writing to follow up on the below. Can you provide some guidance on when we can expect the April 30th NAV so we can update our very eager clients.

Thank you.

My Best,
Joshua

Sent from my iPhone

On Apr 23, 2021, at 12:05 PM, Jonas Lauren Norr <jonas@cryptolotus.com> wrote:

Thanks Joshua. Redeeming by May 30th should not be a problem, but providing you with April's NAV by May 7th is not within our control and likely will be a problem. That's simply not the schedule our Admins work on which is who we would exclusively depend on to deliver that data. End of May is more likely given how they've been able to report in the past.

Best,

Jonas

On Apr 23, 2021, at 11:59 AM, Joshua Milstein <josh@greensandsequity.com> wrote:

Hi Jonas,

Per our settlement contract we are entitled to a monthly NAV per which we can decide on liquidation and we are entitled to cash out within a month. We were entitled to March 31 NAV and a cash out before end of April, however based on estimates and preview of fund performance we chose to delay cash out to April 30th NAV.

Can you pls take note that we would like to know the April 30th Net Asset Value of our total investment of 585K made in Feb/March 2018. We would like this number by or before May 7. Unaudited is fine. In all likelihood we would like to cash out our entire investment by or before May 30th. Our clients are losing their patience and demand immediate liquidity. Per our agreed settlement terms also, we are within our rights to make this request.

I am giving you advance notice so you can be prepared appropriately.

Thank you.

My Best,

Joshua

Sent from my iPhone



Re: Default Proceedings.eml
47kB

EXHIBIT E



GREEN SANDS INVESTMENT CLUB B, LLC

August 4, 2021

Crypto Lotus Fund A, L.P.
c/o Sam Lieberman
Sadis & Goldberg LLP
551 Fifth Ave. 21st Floor
New York, NY 10176

VIA U.S. MAIL & E-MAIL

RE: Withdrawal Notice

To Whom It May Concern:

Pursuant to Section 1 of that certain letter agreement by and between Green Sands Investment Club B, LLC, as Investor ("Green Sands") and Crypto Lotus Fund A, LP, as Company ("Crypto Lotus") dated as of March 19, 2021 (the "Letter Agreement"), Green Sands hereby makes this Withdrawal Notice and exercises its right to withdraw 100% of its Capital Account Balance, in the amount to be calculated as the greater of (i) the Capital Account Balance as of March 31, 2021 or (ii) the Capital Account Balance as of April 30, 2021.

Pursuant to the Letter Agreement, you must remit payment in full within the Withdrawal Notice Period, which for the avoidance of doubt is thirty (30) calendar days here from.

Capitalized terms used herein but not otherwise defined shall have the respective meanings ascribed thereto in the Letter Agreement.

Sincerely,

Reema Khan
Authorized Signatory

CC: Sam Lieberman, slieberman@sadis.com
Carmelo Chimera, carmelo@greensandsequity.com
Jonas Norr, jonas@cryptolotus.com
Jonas Hill, jhill@cryptolotus.com
Kevin Fischer, k@cryptolotus.com

PART VI

WITHDRAWAL OR REDEMPTION NOTICE

This withdrawal or redemption notice should be sent by email as a pdf to the Administrator using the contact information that appeared on your original Subscription Agreement, or the information later instructed by the Fund. Neither the Fund nor the Administrator accept any responsibility for any errors in or liability arising from any such email, including any responsibility for any loss as a result of the non-receipt of any withdrawal notice sent by email.

Solicitation of Withdrawal

The Investor or Investors named below hereby request withdrawal or redemption of all or a portion of its or their Interests in the Fund(s) indicated below in accordance with the instructions provided below. The Investor hereby acknowledges that withdrawal or redemption is subject in all respects to the periods of notice and other terms, condition and restrictions specified in the Fund's Private Placement Memorandum. The Investor hereby represents and warrants in its individual capacity or as an authorized representative of a partnership or corporation or as a trustee or authorized representative of a trustee that he or she is the true and lawful owner of the Interests to which this request relates, with full power and authority to request withdrawal or redemption as herein requested.

This withdrawal or redemption is subject to the terms and conditions imposed by the Fund, including as to the date by which this notice must be received by the Fund, the method of valuation of Interests, and the timing of the payment of withdrawal or redemption proceeds to an Investor.

Withdrawal or Redemption Instructions

Withdrawing or Redeeming Investor: Green Sands Investor Club B, LLC

Provide the Investor's full legal name used in Part III of its original Subscription Agreement, and include the co investor and representative name identified in Part III if applicable

I/We hereby request to withdraw or redeem:

Fiat USD Amount or % of Interests: 100%

(for in kind withdrawals, please contact the Administrator using the contact information noted at the end of Part I of this Subscription Agreement for further guidance)

- ☒ **Crypto Lotus Fund A, L.P. (withdrawal)**
- ☒ **Crypto Lotus Fund B, LLC (withdrawal)**
- ☒ **Crypto Lotus Fund B (International), Ltd. (redemption)**

Intended Effective Date of Withdrawal: End of [indicate month, year]: _____
(for example, June 2018)

Holidays may cause deadlines to be earlier, and may cause the effective date of withdrawal or redemption to be later.

Withdrawal or redemption requests will be irrevocable. If a withdrawal or redemption request is not received by the due date, your withdrawal or redemption will be effective the next available withdrawal or redemption date (that is, it may be delayed a month or more, during which time you will participate in the Fund's gains or losses).

Withdrawal or redemption proceeds will be sent by wire transfer in accordance with the payment instructions informed in the Investor's original Subscription Form. Withdrawing or Redeeming Investors remain subject to the Fund's minimum balance requirements.

Written notice of a withdrawal or redemption request is due on or before the deadline set out in the Funds' current Private Placement Memorandum and the Crypto Lotus Fund A, L.P. Signature Package and related materials, as applicable. Note that such deadlines are subject to change.

Signature(s):



Investor / Representative

Co-Investor/Second Representative (if any)

Date: _____

EXHIBIT F

Green Sands Investment Club B, LLC
548 Palmer Ln
Menlo Park,, CA 94025
United States

Fund Name: CRYPTO LOTUS FUND A, LP
Registered Investor: Green Sands Investment Club B, LLC
Value Date: March 31, 2021
Trident Reference: CLBL-A-PR-GRSIC

Capital Account	December 31, 2020	Account Activity			March 31, 2021
	Gross Capital Account Balance US\$ Rounded	Contributions US\$	Withdrawals US\$	Appreciation/ (Depreciation) US\$	Gross Capital Account Balance US\$ Rounded
GRSIC001 - Limited Partner - 2%/20%	625,848	--	--	4,276,254	4,902,103
Total Value US\$	625,848	--	--	4,276,254	4,902,103

Performance data is for the reporting period of: January 1, 2021 to March 31, 2021

Fund Performance - Net	For Period	YTD
GRSIC001 - Limited Partner - 2%/20%	683.27 %	683.27 %

For further information contact:

Trident Fund Services, Inc., ("Trident") calculates the values contained in this report using market data and other information collected from third-party vendors, where available and deemed appropriate in consultation with the fund's investment advisor, general partner or other affiliated entity (collectively, the "Advisor"). Where information is not available from a third-party vendor or deemed inappropriate by the Advisor, certain estimates and other information, including, but not limited to valuation of investments, have been provided by the Advisor without independent verification. Therefore, the values shown herein may not necessarily reflect actual market values or be realized upon liquidation. This report is intended for informational purposes only and not as tax or legal advice. Trident has not audited the values contained in this report and, accordingly, we do not express an opinion or any other form of assurance thereon.